



CHAPTER clxviii.

An Act to empower the Southern Railway Company to construct works and acquire lands to extend the time for the completion of certain works and the compulsory purchase of certain lands to make provision with reference to the rates and charges which may be levied at certain harbours of the Company and for other purposes. A.D. 1930.
[1st August 1930.]

WHEREAS it is expedient that the Southern Railway Company (in this Act referred to as "the Company") should be empowered to construct the railway widenings of railway and other works by this Act authorised and to acquire certain lands in this Act described :

And whereas it is expedient that the period now limited for the completion of certain works and the compulsory purchase of certain lands should be extended as provided by this Act :

And whereas it is expedient that certain of the provisions of the Southern Railway Harbours Docks and Piers (Temporary Increase of Charges) Order 1929 should continue in force after the first day of October one thousand nine hundred and thirty and that other powers with reference to the rates and charges leviable at the harbours of the Company should be conferred as in this Act contained :

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— And whereas it is expedient to provide that the London Brighton and South Coast Railway Pension Fund and all moneys property and assets thereof shall at all times be available for the payment of pensions and for meeting other obligations of the fund and to enact the other provisions with reference thereto in this Act contained :

And whereas it is expedient that the sums which may be borrowed on mortgage of the undertaking of the Company and by the creation and issue of debenture stock should be increased as by this Act provided and that the Company should be empowered to apply their funds to the purposes of this Act and to the general purposes of their undertaking and that the other powers in this Act mentioned should be conferred :

And whereas plans and sections showing the lines and levels of the works to be constructed under the powers of this Act and plans of the lands by this Act authorised to be acquired and a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were deposited with the clerks of the peace for the several counties within which the said works will be constructed and the said lands are situate which plans sections and book of reference are in this Act respectively referred to as the deposited plans sections and book of reference :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short title.

1. This Act may be cited for all purposes as the Southern Railway Act 1930.

Interpretation.

2. In this Act unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated

herewith have in relation to the relative subject matter A.D. 1930.
the same respective meanings And—

“The Company” means the Southern Railway Company;

“The railway” means the railway by this Act authorised;

“The widenings” means the widenings of railways
by this Act authorised;

“Telegraphic line ” has the same meaning as in the
Telegraph Act 1878;

“The Act of 1924” means the Southern Railway Act 1924; and

“The Act of 1927” means the Southern Railway
Act 1927;

All distances and lengths stated in any description of works or lands shall be read and have effect as if the words " or thereabouts " were inserted after each such distance and length.

3. The following Acts and Parts of Acts so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act are incorporated with and form part of this Act (that is to say) :—

The Lands Clauses Acts :

Provided that any question of disputed compensation under this Act or any Act incorporated herewith (other than a question required to be determined by two justices) shall be determined by a single arbitrator to be agreed upon between the Company and the person claiming the compensation or in default of such agreement appointed by the Board of Trade on the application of either party ;

The Railways Clauses Consolidation Act 1845;

Part I (relating to construction of a railway) and
Part II (relating to extension of time) of the
Railways Clauses Act 1863;

Part III (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts and as incorporated with and varied by the Railways (Southern Group) Amalgamation Scheme 1922.

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Interpreta-
tion of term
“ parish
clerks ” &c.

4. For the purposes of the incorporation of the Railways Clauses Consolidation Act 1845 with this Act the expressions “ parish clerks ” and “ clerks of several parishes ” where used in sections 7 8 and 9 of the said Act of 1845 shall as regards the administrative county of London mean the town clerks of the metropolitan boroughs.

Protection
of gas and
water mains
of local
authorities.

5. The provisions of sections 18 to 23 of the Railways Clauses Consolidation Act 1845 shall for the purposes of this Act extend and apply to the gas and water mains pipes and apparatus of any local authority or gas or water board and shall be construed as if “ local authority ” “ gas board ” and “ water board ” were mentioned in those sections in addition to “ company or society ” Provided that any penalties recovered under section 23 shall be appropriated to that fund of the local authority or gas or water board to which their revenues in respect of gas or water (as the case may be) are appropriated.

Power to
make rail-
way and
widening.

6. Subject to the provisions of this Act the Company may in the lines shown on the deposited plans and according to the levels shown on the deposited sections make and maintain the railway and the widenings hereinafter described with all necessary works and conveniences connected therewith and may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited book of reference relating thereto as may be required for those purposes and for any other purposes connected with their undertaking (that is to say) :—

In the county of Surrey—

A railway (7 miles 3 furlongs 2 chains in length) commencing in the urban district of The Maldens and Coombe by a junction with the Wimbledon and Epsom line at a point 617 yards south of Blue House level crossing and terminating in the urban district of Leatherhead by a junction with the Epsom and Leatherhead line at a point 270 yards north-east of the bridge carrying Kingston Road over such last-mentioned line;

In the county of Middlesex—

A widening (No. 1) (1 mile 0 furlongs 5·95 chains in length) in the urban district of Heston

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and Isleworth of the Hounslow loop line A.D. 1930.
on both sides thereof commencing at a
point 18 yards north-east of the bridge
carrying Heath Road over that line and
terminating at a point 17 yards south-west
of the bridge carrying the said line over
St. Johns Road;

A widening (No. 2) (6 furlongs 6·55 chains in
length) in the urban district of Heston and
Isleworth of the Hounslow loop line on
both sides thereof commencing at a point
16 yards north-east of Wood Lane level
crossing and terminating at a point 16 yards
south-west of the bridge carrying the Great
Western Railway (Brentford branch) over
that line.

7. For the purpose of demanding and recovering Rates and
tolls fares rates and charges and for all other purposes charges.
the railway and the widenings shall be deemed to form
part of the undertaking of the Company.

8. If the railway be not completed within the Period for
period expiring on the first day of October one thousand completion
nine hundred and thirty-five then on the expiration of railway.
of that period the powers by this Act granted for making
and completing the same or otherwise in relation thereto
shall cease except as to so much thereof as shall then
be completed.

9. If the Company fail within the period limited Imposing
by this Act to complete the railway and open the same penalty if
for public traffic they shall be liable to a penalty of railway not
fifty pounds a day for every day after the expiration opened
of the period so limited until the railway is completed within
and opened for public traffic or until the sum received period
in respect of such penalty amounts to five per centum limited.
on the estimated cost thereof.

The said penalty may be applied for by any land-
owner or other person claiming to be compensated or
interested in accordance with the provisions of the
next following section of this Act and in the same manner
as the penalty provided in section 3 of the Railway
and Canal Traffic Act 1854.

Every sum of money recovered by way of such
penalty as aforesaid shall be paid under the warrant

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— section to an account opened or to be opened in the
name of the Paymaster-General for and on behalf of
the Supreme Court in the bank and to the credit specified
in such warrant or order and shall not be paid thereout
except as hereinafter provided.

But no penalty shall accrue in respect of any time
during which it shall appear by a certificate to be
obtained from the Minister of Transport that the Com-
pany were prevented from completing or opening the
railway by unforeseen accident or circumstances beyond
their control provided that the want of sufficient funds
shall not be held to be a circumstance beyond their
control.

Application
of penalty.

10. Every sum of money so recovered by way of
penalty as aforesaid shall be applicable and after due
notice in the London Gazette shall be applied towards
compensating any landowners or other persons whose
property has been interfered with or otherwise rendered
less valuable by the commencement construction or
abandonment of the railway or any portion thereof
or who have been subjected to injury or loss in con-
sequence of the compulsory powers of taking property
conferred upon the Company by this Act for the pur-
poses of the railway and for which injury or loss no
compensation or inadequate compensation has been
paid and shall be distributed in satisfaction of such
compensation as aforesaid in such manner and in such
proportions as to the High Court may seem fit.

If no such compensation is payable or if a portion
of the sum or sums of money so recovered by way of
penalty as aforesaid has been found sufficient to satisfy
all just claims in respect of such compensation then
the said sum or sums of money recovered by way of
penalty or such portion thereof as may not be required
as aforesaid shall if a receiver has been appointed or
the Company is insolvent or the railway or any part
thereof has been abandoned be paid or transferred to
such receiver or be applied in the discretion of the
court as part of the assets of the Company for the
benefit of the creditors thereof and subject to such
application shall be repaid or re-transferred to the
Company.

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of Chessington over the railway shall be constructed with a clear width of not less than forty feet between the parapets thereof measured at right angles with the road and with parapets on each side thereof of a height of not less than four feet six inches and shall be constructed of such strength as shall be sufficient to carry such standard load as may be prescribed by the Minister of Transport for a bridge carrying a highway over a railway;

- (b) If in constructing the bridge mentioned in this subsection the Company shall require to alter the gradient of or in any way interfere with the existing road at either end of the bridge they shall so construct the bridge that the surface of the carriageway thereon shall be horizontal and at the same level as the surface of the carriageway at either end of the bridge and so that the gradient of the approaches where altered shall not be steeper than one in thirty or than the existing gradient whichever may be the greater and so that the width of the approaches where altered shall not be less than forty feet between the fences thereof;
- (c) The Company shall to the reasonable satisfaction of the surveyor to the highway authority (hereinafter referred to as "the surveyor") form make up and complete the carriageway on the said bridge and on the approaches thereto where altered by the Company with the same materials and in the same manner as the carriageway of the existing road is made up and form make up and pave a footway of six feet in width on each side of the bridge and the approaches thereto where altered and provide proper and sufficient surface water drains with suitable gully gratings and branch drains to communicate therewith and any other works required to drain surface water from the said bridge and the said approaches where altered :
- (3) The Company shall not stop up divert or interfere with either of the footpaths in the parish of Chessington leading to St. Mary's Church

from (1) Harrow Inn and (2) Chessington School until they have completed the said bridge carrying Church Lane over the railway and complied with the provisions of subsection (2) of this section. After the Company have completed the said bridge and complied with the provisions of the said subsection (2) they may stop up so much of the said footpaths as is situate between Kingston Road and the junction of Church Lane with Green Lane: A.D. 1930.

- (4) Before commencing the construction of any of the bridges referred to in subsections (1) and (2) of this section the Company shall submit to the surveyor for his approval plans sections and elevations of the works proposed to be executed in connection with such bridge. Provided that if the surveyor shall in any case unreasonably withhold his approval under this subsection the plans sections and elevations shall be settled by arbitration as hereinafter provided and if the surveyor does not within twenty-eight days after the submission to him of any plans sections and elevations under this subsection signify his approval or disapproval thereof or his requirements with respect thereto he shall be deemed to have approved of them :
- (5) All works in connection with the construction of any of the said bridges shall be executed and carried out only in accordance with such plans sections and elevations as shall be approved by the surveyor or settled by arbitration as aforesaid and in such manner as not unnecessarily to obstruct or impede the public use of the road over or under which the bridge is to be constructed and after commencement shall be proceeded with with all reasonable dispatch :
- (6) Before commencing the execution of any work in connection with any such bridge as aforesaid the Company shall give to the surveyor not less than twenty-eight days' previous notice in writing of the date when such work will be commenced and all such works shall be carried out to his reasonable satisfaction :

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(7) All costs charges and expenses (other than remuneration for work done in the ordinary course of their employment by salaried officers of the highway authority) reasonably incurred by the highway authority in connection with the construction of the bridges aforesaid and the execution of any works in connection therewith respectively shall be paid to the highway authority by the Company :

(8) Any difference which may arise between the Company and the highway authority under this section shall be referred to and determined by an arbitrator to be appointed on the application of either party (after notice in writing to the other) by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to the reference.

For protec-
tion of The
Maldens
and Coombe
Urban
District
Council.

12. For the protection of The Maldens and Coombe Urban District Council (in this section referred to as "the council") the following provisions shall except so far as may be otherwise agreed in writing between the Company and the council have effect (that is to say) :—

(1) (a) If the railway is opened for public traffic before the construction and dedication as a public highway of the town planning road numbered 36 on the map numbered 2A of the town planning scheme now in course of preparation by the council which map is referred to in the preliminary statement of proposals deposited with the Minister of Health on the twenty-seventh day of May one thousand nine hundred and twenty-six for inclusion in such scheme (which scheme shall be deemed to include a diversion of such road necessitated by the construction or intended construction of the railway) the Company shall afford to the council or the owners of the lands on either side of the railway across which lands the said town planning road is to be constructed (and which owners are in this section referred to as "the owners") all reasonable facilities for the construction at the cost of the council or the owners respectively of a bridge sixty feet in width between the

parapets to carry the said town planning road over the railway between the points approximately one furlong and two furlongs respectively from the commencement of the railway and shall grant to the council or the owners as the case may be such wayleaves or easements as may be necessary for that purpose without expense to the council or the owners; A.D. 1930.

- (b) The said bridge and all works in connection therewith shall be constructed under the superintendence and to the reasonable satisfaction of the chief engineer of the Company and in accordance with plans sections and specifications to be previously submitted to and reasonably approved by him;
 - (c) The said bridge when so constructed and the approaches thereto shall be the property of the council or the owners by whom it has been constructed and the council or the owners as the case may be or in default of the owners the council shall maintain the same to the reasonable satisfaction of the said chief engineer and shall also maintain the roadway and footways thereon :
- (2) If the said town planning road numbered 36 is constructed and dedicated as a public highway where it will be crossed by the railway between the points referred to in subsection (1) of this section before the railway is opened for public traffic the Company shall at their own cost carry the road over the railway by means of a bridge with a width between the parapets of not less than sixty feet and shall thereafter maintain the said bridge and the approaches thereto :
- (3) If the said town planning road numbered 36 after having been constructed and dedicated as a public highway between the points referred to in subsection (1) of this section is not completed and dedicated as a public highway to its eastern termination as shown on the said map numbered 2A within five years after the opening of the railway for public traffic the Council shall repay to the Company the cost incurred by them in constructing the said bridge to carry the said

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road over the railway and the council shall thereafter maintain to the reasonable satisfaction of the chief engineer of the Company the said bridge and the approaches thereto and the roadway and footways thereon. The Company shall furnish the council with full details of the cost of the construction of such bridge and the accounts for the same shall be open to inspection by the council :

- (4) If the town planning road numbered 30 on the said map numbered 2A is constructed and dedicated as a public highway between Church Road and its junction with the town planning road numbered 32 shown on the said town planning scheme before the opening of the railway for public traffic the Company shall at their own cost carry the railway over the said road by means of a bridge with a width of fifty feet between the abutments and a clear headway of sixteen feet above the level of the surface of the road which level at the point of crossing of the railway shall not be higher than seventy feet above Ordnance datum :
- (5) (a) If the railway is opened for public traffic before the construction and dedication as a public highway of the said town planning road numbered 30 the Company shall afford to the council all reasonable facilities for the construction of a bridge with a width of fifty feet between the abutments to carry the said town planning road under the railway between points approximately seven furlongs and one mile respectively from the commencement of the railway and shall grant to the council or the owners such wayleaves or easements as may be necessary for that purpose without expense to the council. Provided that if the Company so elect they may themselves at the expense of the council construct the bridge to carry such town planning road under the railway ;
- (b) The said bridge so constructed by or at the expense of the council shall be the property of the Company and shall be maintained by them at the expense of the council :

- (6) The Company shall divert the public footpath on the north-eastern side of Sheephouse Lane numbered on the deposited plans 59 in the urban district of The Maldens and Coombe so that it may pass under the railway at the said bridge carrying the said town planning road under the railway : A.D. 1930.
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- (7) If the railway is constructed before the said town planning road numbered 30 is constructed and dedicated as a public highway the Company shall provide and shall (until the said road is constructed and dedicated as a public highway) maintain subways ten feet in width to carry the public footpaths numbered on the deposited plans 59 and 63 respectively in the said urban district under the railway :
- (8) The watercourse along the western side of Malden Road numbered on the deposited plans 40 and the watercourse numbered on the deposited plans 64 in the said urban district shall be culverted by the Company where the railway is constructed over it or diverted so as to avoid the railway and the culverting or diversion as the case may be of the said watercourse shall be carried out to the reasonable satisfaction of the council and in accordance with plans to be submitted for the reasonable approval of the council and the culverting shall be thereafter maintained to the reasonable satisfaction of the council :
- (9) Before commencing the construction of the bridges referred to in subsections (2) and (4) of this section the Company shall submit to the surveyor to the council (in this section referred to as "the surveyor") for his approval plans sections and elevations of the works proposed to be executed in connection with such bridges Provided that if the surveyor shall withhold his approval under this subsection the plans sections and elevations shall be settled by arbitration as hereinafter provided and if the surveyor does not within twenty-eight days after the submission to him of any plans sections and elevations under this subsection signify his

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approval or disapproval thereof or his requirements with respect thereto he shall be deemed to have approved of them :

- (10) All works of the Company in connection with the construction of the said bridges shall be executed only in accordance with such plans sections and elevations as shall be approved by the surveyor or settled by arbitration as aforesaid and in such manner as not unnecessarily to obstruct or impede the public use of the road which is intended to be carried by the bridge or the road over which the bridge is to be constructed as the case may be and after commencement shall be proceeded with with all reasonable dispatch :
- (11) Before commencing the execution of any work in connection with any such bridge as aforesaid the Company shall give to the surveyor not less than twenty-eight days' previous notice in writing of the date when such work will be commenced and all such works shall be carried out to his reasonable satisfaction :
- (12) All costs charges and expenses (other than remuneration for work done in the ordinary course of their employment by salaried officers of the council) reasonably incurred by the council in connection with the construction of the aforesaid bridges and the execution of any works in connection therewith respectively shall except as in this section otherwise provided be paid to the council by the Company :
- (13) Any difference which may arise between the council and the Company under the provisions of this section shall be referred to and determined by an engineer to be appointed by the President of the Institution of Civil Engineers on the application of either party after notice in writing to the other and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

For protection of Surbiton Urban District Council.

13. For the protection of the Surbiton Urban District Council (in this section referred to as "the council") the following provisions shall except so far as

may be otherwise agreed in writing between the Company and the council have effect (that is to say):— A.D. 1930.

(1) (a) If the railway is opened for public traffic before the construction and dedication as a public highway of the town planning road numbered 12 on the map numbered 2A of the town planning scheme now in course of preparation by the council which map is referred to in an instrument issued by the Minister of Health on the first day of July one thousand nine hundred and twenty-nine approving the preliminary statement of proposals for inclusion in such scheme (which scheme shall be deemed to include a diversion of such road necessitated by the construction or intended construction of the railway) the Company shall afford to the council or the owners of the lands on either side of the railway across which lands the said town planning road is to be constructed (and which owners are in this section referred to as "the owners") all reasonable facilities for the construction at the cost of the council or the owners respectively of a bridge sixty feet in width between the parapets to carry the said town planning road over the railway at a point between one mile four furlongs and one mile five furlongs from the commencement of the railway as shown on the plan (in this section referred to as "the signed plan") signed by George Ellson on behalf of the Company and by Henry James Deane on behalf of the council and shall grant to the council or the owners as the case may be such wayleaves or easements as may be necessary for that purpose without expense to the council or the owners;

(b) The said bridge and all works in connection therewith shall be constructed under the superintendence and to the reasonable satisfaction of the chief engineer of the Company and in accordance with plans sections and specifications to be previously submitted to and reasonably approved by him;

(c) The said bridge when so constructed and the approaches thereto shall be the property of the

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council or the owners by whom it has been constructed and the council or the owners as the case may be or in default of the owners the council shall maintain the same to the reasonable satisfaction of the said chief engineer and shall also maintain the roadway and footways thereon :

- (2) If the said town planning road numbered 12 is constructed and dedicated as a public highway at the said point between one mile four furlongs and one mile five furlongs from the commencement of the railway as shown on the signed plan or within one hundred yards thereof before the railway is opened for public traffic the Company shall at their own cost carry the road over the railway by means of a bridge with a width between the parapets of not less than sixty feet and shall thereafter maintain the said bridge and the approaches thereto :
- (3) If the said town planning road numbered 12 having been constructed and dedicated as a public highway at the said point between one mile four furlongs and one mile five furlongs from the commencement of the railway shown on the signed plan is not completed and dedicated as a public highway between Ewell Road and Warren Drive within five years after the opening of the railway for public traffic the council shall repay to the Company the cost incurred by them in constructing the said bridge to carry the said town planning road over the railway and the council shall thereafter maintain to the reasonable satisfaction of the said chief engineer of the Company the said bridge and the approaches thereto and the roadway and footways thereon The Company shall furnish the council with full details of the cost of the construction of such bridge and the accounts for the same shall be open to inspection by the council :
- (4) The Company shall construct the railway where it passes through the lands belonging to the council numbered on the deposited plans 11 12 and 13 in the urban district of Surbiton as near as is reasonably practicable to the north-western

boundary of the said lands and the Company shall raise the level of the railway so as to enable them to provide and the Company shall provide in the positions shown on the signed plan and at the present ground levels respectively (a) a subway twenty-five feet in width with a headway of fourteen feet and (b) a subway eight feet in width with a headway of not less than eight feet and shall thereafter maintain such subways to the reasonable satisfaction of the council :

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- (5) The Company shall carry the footpath on the property numbered on the deposited plans 2 in the said urban district over the railway by means of a footbridge or under the railway by means of a subway at the present ground level such footbridge or subway to be constructed and thereafter maintained to the reasonable satisfaction of the council :
- (6) (i) Before commencing the construction of the bridge referred to in subsection (2) of this section the Company shall submit to the surveyor to the council (in this section referred to as "the surveyor") for his approval plans sections and elevations of the works proposed to be executed in connection with such bridge Provided that if the surveyor shall withhold his approval under this subsection the plans sections and elevations shall be settled by arbitration as hereinafter provided and if the surveyor does not within twenty-eight days after the submission to him of any plans sections and elevations under this subsection signify his approval or disapproval thereof or his requirements with respect thereto he shall be deemed to have approved of them ;
- (ii) All works in connection with the construction of the said bridge shall be executed only in accordance with such plans sections and elevations as shall be approved by the surveyor or settled by arbitration as aforesaid and in such manner as not unnecessarily to obstruct or impede the public use of the road which is intended to be carried by such bridge and after commencement shall be proceeded with with all reasonable dispatch ;

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- (iii) Before commencing the execution of any work in connection with the said bridge the company shall give to the surveyor not less than twenty-eight days' previous notice in writing of the date when such work will be commenced and all such works shall be carried out to his reasonable satisfaction;
- (iv) All costs charges and expenses (other than remuneration for work done in the ordinary course of their employment by salaried officers of the council) reasonably incurred by the council in connection with the construction of the said bridge and the execution of any works in connection therewith respectively shall except as in this section otherwise provided be paid to the council by the Company:
- (7) Any difference which may arise between the council and the Company under the provisions of this section shall be referred to and determined by an engineer to be appointed by the President of the Institution of Civil Engineers on the application of either party after notice in writing to the other and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

For protection of The Maldens and Coombe and Surbiton Urban District Councils.

14. For the protection of The Maldens and Coombe Urban District Council and the Surbiton Urban District Council (in this section collectively referred to as "the councils") the following provisions shall except so far as may be otherwise agreed in writing between the Company and the councils have effect (that is to say):—

- (1) Notwithstanding anything shown on the deposited plans and sections the Company shall construct the railway from its commencement in the urban district of The Maldens and Coombe to a point one mile four furlongs or thereabouts from such commencement in the urban district of Surbiton in the line and according to the levels shown on the plan (in this section referred to as "the signed plan") signed by George Ellson on behalf of the Company and by Henry James Deane on behalf of the councils and not in the line and according to the levels shown on the deposited plans and sections;

- (2) The Company shall carry the railway over the Hogsmill River numbered on the deposited plans 66 in the urban district of The Maldens and Coombe and 1 in the urban district of Surbiton and the lands on either side of such river on a viaduct consisting of three arches. The centre arch shall be constructed so that the centre thereof is immediately over the centre of the said river and shall have a width of fifty feet between the abutments and the arch on either side of the centre arch shall have a width of thirty feet between the abutments. Plans and elevations of such viaduct showing the design thereof (which shall be of a reasonably ornamental character) shall be submitted to the councils for their reasonable approval. Provided that if within twenty-eight days from the submission to them of such plans and elevations the councils do not in writing express their disapproval they shall be deemed to have approved thereof: A.D. 1930.
- (3) The Company shall to the reasonable satisfaction of the councils plant and keep planted with trees so much of the embankments of the railway as will be situate on the lands numbered on the deposited plans 64 65 and 67 in the urban district of The Maldens and Coombe and 2 in the urban district of Surbiton:
- (4) Any difference which may arise between the councils and the Company under the provisions of this section shall be referred to and determined by an engineer to be appointed by the President of the Institution of Civil Engineers on the application of either party after notice in writing to the other and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

15. For the protection of the Epsom Rural District Council (in this section referred to as "the council") the following provisions shall except so far as may be otherwise agreed in writing between the Company and the council have effect (that is to say):—

For protec-
tion of
Epsom
Rural
District
Council.

- (1) (a) If the railway is opened for public traffic before the construction and dedication as a public highway of the town planning road

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numbered 2 on the map numbered 2 of the town planning scheme now in course of preparation by the council for the parish of Chessington the Company shall afford to the council all reasonable facilities for the construction at the cost of the council of a bridge with a width between the abutments of fifty feet to carry the said town planning road under the railway at a point approximately three miles one furlong seven chains from the commencement of the railway as shown on the plan (in this section referred to as "the signed plan") signed by George Ellson on behalf of the Company and by Wilfred John Pickering on behalf of the council and shall grant to the council or the owners of the lands on either side of the railway across which lands the said town planning road is to be constructed (and which owners are in this section referred to as "the owners") such wayleaves as may be necessary for that purpose without expense to the council or the owners. Provided that if the Company so elect they may themselves at the expense of the council or the owners as the case may be construct the bridge to carry the said town planning road under the railway;

- (b) The said bridge so constructed by or at the expense of the council shall be the property of the Company and shall be maintained by them at the expense of the council or the owners as the case may be or in default of the owners the council:
- (2) If the said town planning road numbered 2 is constructed and dedicated as a public highway at the said point referred to in subsection (1) of this section before the railway is opened for public traffic the Company shall at their own cost carry the railway over the road by means of a bridge with a width between the abutments of not less than fifty feet and a clear headway of sixteen feet above the level of the surface of the road which level at the point of crossing of the railway shall not be higher than one hundred and seventeen feet six inches above Ordnance datum:

- (3) Before commencing the construction of the bridge referred to in subsection (2) of this section the Company shall submit to the surveyor to the council (in this section referred to as "the surveyor") for his approval plans sections and elevations of the works proposed to be executed in connection with such bridge. Provided that if the surveyor shall withhold his approval under this subsection the plans sections and elevations shall be settled by arbitration as hereinafter provided and if the surveyor does not within twenty-eight days after the submission to him of any plans sections and elevations under this subsection signify his approval or disapproval thereof or his requirements with respect thereto he shall be deemed to have approved of them :
- (4) All works in connection with the construction of the said bridge shall be executed only in accordance with such plans sections and elevations as shall be approved by the surveyor or settled by arbitration as aforesaid and in such manner as not unnecessarily to obstruct or impede the public use of the road over which the bridge is to be constructed and after commencement shall be proceeded with with all reasonable dispatch :
- (5) Before commencing the execution of any work in connection with the said bridge the Company shall give to the surveyor not less than twenty-eight days' previous notice in writing of the date when such works will be commenced and all such works shall be carried out to his reasonable satisfaction :
- (6) All costs charges and expenses (other than remuneration for work done in the ordinary course of their employment by salaried officers of the council) reasonably incurred by the council in connection with the construction of the said bridge and the execution of any works in connection therewith respectively shall except as in this section otherwise provided be paid to the council by the Company :

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- (7) The Company shall provide a level crossing for the footpath numbered on the deposited plans 56 in the parish of Chessington with good and sufficient gates or stiles on each side of the railway and a suitable break in any conductor rail which may be laid on the railway shall be made at the said level crossing :
- (8) Any difference which may arise between the council and the Company under the provisions of this section shall be referred to and determined by an engineer to be appointed by the President of the Institution of Civil Engineers on the application of either party after notice in writing to the other and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

For protection of certain local authorities in regard to sewers.

16. The following provisions for the protection of The Maldens and Coombe Urban District Council the Surbiton Urban District Council and the Epsom Rural District Council (each of which councils is in this section referred to as "the council") shall notwithstanding anything in this Act contained and except so far as it may be otherwise agreed in writing between the Company and the council have effect (that is to say) :—

- (1) The council shall at all times have free access to and communication with any sewer or drain or any works in connection therewith under their control (in this section referred to as "sewers") and may exercise any power which they may possess of laying drains to communicate therewith without the concurrence or consent of the Company Provided that any works done by the council so far as such works may affect the railway shall be carried out under the superintendence (if such superintendence shall be given) and to the reasonable satisfaction of the Company and if so required by the Company in accordance with plans sections and specifications to be previously submitted to and approved by them (such approval not being unreasonably withheld) and if the Company do not signify their disapproval within twenty-eight days after such submission they shall be taken to have approved :

(2) Where any of the works authorised by this Act A.D. 1930.

pass over or under or interfere with any sewers or in any way affect the sewerage or drainage of the district under the control of the council the Company shall give to the council twenty-eight days' previous notice in writing of their intention to commence such works such notice being accompanied by plans and sections or other sufficient particulars thereof and the Company shall not commence the said works except with the approval of the council and shall comply with all reasonable directions of the council in the execution thereof Provided that such approval shall not be unreasonably withheld and that if the council do not signify their disapproval within twenty-eight days after receipt of such notice as aforesaid they shall be deemed to have approved For the protection of the council in respect of and for preventing injury or impediment to the sewers the Company shall either alter the existing sewers or substitute others for them in such manner as the council may reasonably require and any such altered or substituted sewers as aforesaid shall thereafter be as fully under the control of the council as were the said existing sewers before alteration or substitution as the case may be The Company shall execute all works referred to in this subsection at their own expense and under the superintendence of the council (if such superintendence shall be given) and shall on demand repay to the council any expenses (other than remuneration for work done in the ordinary course of their employment by salaried officers of the council) which they may reasonably incur in accordance with this subsection in respect of the said works :

(3) Instead of any such alterations or substitutions of sewers as are in the last preceding subsection referred to being executed by the Company they may be executed by the council if they so require at the reasonable expense of the Company If the council intend to execute the same themselves they shall within twenty-eight days

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after receipt of such notice as aforesaid give to the Company notice (accompanied by sufficient particulars) of that intention and shall commence execute and complete the works with all reasonable dispatch :

- (4) If by reason of the execution of any of the powers of this Act the council necessarily incur any expense in reconstructing lengthening altering or repairing any existing sewers or any additional expense in thereafter maintaining the same the Company shall repay to the council such expense :
- (5) (a) If the council shall at any time require to lay down under the railway any new sewer or drain the Company shall afford to the council all reasonable facilities for the construction of any such works and shall grant to the council such wayleaves or easements as may be necessary for that purpose without expense to the council except that the council shall pay any expenses of and incidental to any such grant properly incurred by the Company ;
(b) The council shall at their own expense carry out such works so far as the same may be under over or across the railway under the superintendence and to the reasonable satisfaction of the Company and in accordance with plans sections and specifications to be previously submitted to and approved by the Company Provided that such approval shall not be unreasonably withheld and that if the Company do not signify their disapproval within twenty-eight days they shall be deemed to have approved :
- (6) During and after the execution of the works no surface or subsoil water shall be allowed to discharge into any sewer or drain intended or adapted for the reception of sewage other than surface or subsoil water and no sewage other than surface or subsoil water shall be allowed to discharge into any sewer or drain intended or adapted for the reception of surface or subsoil water only :

- (7) Any difference which may arise between the council and the Company under the provisions of this section shall be referred to and determined by an engineer to be appointed by the President of the Institution of Civil Engineers on the application of either party after notice in writing to the other and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference. A.D. 1930.

17. Notwithstanding anything contained in this Act or shown on the deposited plans the following provisions for the protection of the urban district council of Leatherhead (in this section referred to as "the Leatherhead Council") and the rural district council of Epsom (in this section referred to as "the Epsom Council" and both of which councils are in this section collectively referred to as "the councils") shall apply and have effect except so far as may be otherwise agreed in writing between the councils and the Company as regards subsections (1) to (4) inclusive and in relation thereto subsection (6) and between the Leatherhead Council and the Company as regards subsection (5) and in relation thereto subsection (6) (that is to say):—

For protection of
 Leatherhead
 Urban
 District
 Council
 and Epsom
 Rural
 District
 Council.

- (1) The Company shall provide at or near Epsom Gap numbered on the deposited plans 8 in the urban district of Leatherhead a bridge for carrying that Gap over the railway with a width between the parapets thereof of not less than the existing width of Epsom Gap :
- (2) The Company shall carry Ashtead Gap numbered on the deposited plans 11 in the said urban district over the railway by means of a bridge with a width between the parapets thereof of not less than six feet :
- (3) The Company shall carry Leatherhead Gap numbered on the deposited plans 13 in the said urban district under the railway by means of a subway of a width of not less than ten feet and with a headway of not less than twelve feet :
- (4) The Company shall maintain the structures of the said bridges and subway :

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- (5) The Company shall provide a level crossing for the footpath numbered on the deposited plans 42 in the said urban district with good and sufficient gates or stiles on each side of the railway. The said level crossing shall be situate clear of the points of the junction of the railway with the Epsom and Leatherhead line of the Company and a suitable break in any conductor rail which may be laid on the railway shall be made at the said level crossing :
- (6) Any difference which may arise between the councils and the Company under the provisions of this section shall be referred to and determined by an engineer to be appointed by the President of the Institution of Civil Engineers on the application of either party after notice in writing to the other and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

For protection of Wandsworth Wimbledon and Epsom District Gas Company.

18. For the protection of the Wandsworth Wimbledon and Epsom District Gas Company (in this section referred to as "the undertakers") the following provisions shall notwithstanding anything in this Act contained and unless otherwise agreed in writing between the Company and the undertakers apply and have effect (that is to say) :—

- (1) At least twenty-eight days before commencing any works by this Act authorised which may affect any mains pipes tubes fittings or other apparatus (in this section referred to as "apparatus") of the undertakers the Company shall deliver to the undertakers plans sections and particulars of the works so proposed to be executed describing the proposed manner of executing the same and (except in the case of emergency) a notice stating the date when it is proposed to commence such works :
- (2) If it should appear to the undertakers that such works will interfere with endanger or render useless or partially useless any of their apparatus or impede the supply of gas the undertakers may give notice to the Company to raise lower or otherwise alter the position of such

apparatus or to support the same or to substitute temporarily or otherwise other apparatus or to lay additional new apparatus to connect up any apparatus or any part thereof rendered useless or partially useless by any such works of the Company in such manner as may be reasonably necessary and to lay or place under or over any apparatus cement concrete or other like substance and any difference as to the necessity of such lowering alteration support substitution laying or placing cement concrete or other like substance (in this section referred to as "protective works") shall be settled as hereinafter provided and all such protective works shall save as hereinafter provided be done and executed by and at the expense of the Company but to the reasonable satisfaction and under the superintendence if such be given of the engineer of the undertakers :

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- (3) If the undertakers by notice in writing to the Company within fourteen days after the receipt by them of notice of the intended commencement by the Company of any such works of the Company so require the undertakers may by their own engineer or workmen do and execute such protective works so far as they affect the apparatus of the undertakers and the Company shall on completion thereof pay to the undertakers the reasonable expense incurred by them in the execution of such protective works. The Company shall afford to the undertakers all reasonable facilities for the purpose of enabling the undertakers to carry out any such protective works specified in such notice. Provided that if for twenty-eight days after any such notice is given to the Company by the undertakers the undertakers neglect to proceed with all practicable diligence to carry out such protective works the Company may forthwith proceed with the works by this Act authorised as if such notice had not been given to them:
- (4) In the event of such plans sections and particulars so delivered to the undertakers as aforesaid not being objected to within twenty-eight days from

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the receipt thereof they shall be deemed to have been approved by the undertakers. The works to which the said plans sections and particulars respectively relate shall not be executed except in accordance therewith as approved by the undertakers or as determined by arbitration as hereinafter provided :

- (5) The Company shall not raise sink or otherwise alter the position of any apparatus of the undertakers or alter the level of any street road or other place in which any such apparatus is situate so as to leave over such apparatus a covering of less than three feet where the covering now existing is not less than three feet unless the Company shall in such case protect such apparatus from frost or injury by artificial covering to the reasonable satisfaction of the undertakers or more than five feet where the covering now existing does not exceed five feet or more than the existing covering where such existing covering exceeds five feet unless the Company in either of such last-mentioned cases provide special means of access to the same to the reasonable satisfaction of the engineer of the undertakers :
- (6) Where any bridge carrying a road over a railway is constructed or altered under the powers of this Act the Company shall provide such accommodation beneath the surface of the road or footpath thereof as may be reasonably necessary for carrying such apparatus over the railway or shall make such other provisions for carrying and protecting such apparatus as may be reasonably required and the Company shall on demand repay to the undertakers the reasonable cost of so carrying over the railway any apparatus of the undertakers existing at the passing of this Act :
- (7) The undertakers may where reasonably necessary employ watchmen or inspectors to watch and inspect any works by this Act authorised whereby any apparatus of the undertakers may be interfered with or affected during construction repair or renewal of any such

works and the reasonable wages of such watchmen or inspectors shall be borne by the Company : A.D. 1930.

- (8) The Company shall pay to the undertakers the reasonable cost of and incidental to the cutting off of any apparatus of the undertakers rendered derelict or unnecessary by the execution of any of the works by this Act authorised from any other apparatus of the undertakers and of and incidental to any other works or things rendered necessary in consequence of such apparatus being rendered derelict or unnecessary :
- (9) The reasonable expense of all repairs or renewals of any apparatus of the undertakers or any works in connection therewith which may at any time hereafter be rendered necessary either by reason of the exercise by the Company of the powers conferred upon them by this Act or by the acts or defaults of the Company their contractors agents workmen or servants or any person in the employ of them or any or either of them in the execution of the works by this Act authorised or rendered necessary by reason of any subsidence resulting from such works of the Company whether during the construction of the same or at any time thereafter shall be borne and paid by the Company :
- (10) The Company in executing any works under this Act or in removing raising or otherwise altering the position of any apparatus of the undertakers shall make good all damage done by them to the apparatus or other property of the undertakers :
- (11) The Company shall make reasonable compensation to the undertakers for any loss or damage which they may sustain by reason of any interference with their apparatus or property under the powers of this Act or of the construction failure or user of the works by this Act authorised or by the exercise by the Company of the powers conferred upon them by this Act or by the act or default of the Company or of any of their contractors agents workmen or servants or any person in the employ of them

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or any or either of them in the execution of the works by this Act authorised. The Company shall also indemnify the undertakers in respect of any penalties costs actions claims or demands arising out of any interference by the Company with the apparatus or property of the undertakers :

- (12) It shall be lawful for the undertakers and the engineers workmen and others in their employ at all times when it may be necessary to enter upon the lands works and premises of the Company at any point or place where there is existing apparatus of the undertakers and to do all such works in and upon such lands and premises as may be necessary for repairing maintaining or removing or replacing or extending such apparatus under or over the same lands and premises and notwithstanding the stopping up temporarily of any public street or place under the powers of this Act to exercise the same rights of access as they now enjoy to all or any apparatus of the undertakers situate in or under any such street or place. Provided always that in so doing the undertakers their engineers or workmen or others in the employ of the undertakers shall not interrupt the user of any of the works of the Company by this Act or any other Act authorised. Provided also that the undertakers shall make good and reimburse to the Company all damages to such works occasioned by the exercise of the powers by this section reserved to the undertakers :
- (13) Where the Company shall under the powers of this Act divert any road or footpath in which any apparatus of the undertakers is or may be laid down or placed the undertakers may lay down or place new apparatus in the new portion of road or footpath and connect the same with the apparatus laid or placed in the said road or footpath at the commencement and termination of the diversion :

The Company shall on demand repay to the undertakers the reasonable cost of providing such new apparatus and the costs charges and

expenses reasonably incurred by the undertakers in or in connection with the laying down or placing of the same and the formation of such connections and thereupon the apparatus of the undertakers laid down or placed in the existing road or footpath between the commencement and the termination of the diversion thereof shall become the property of and vest in the Company. Provided that if the new apparatus so laid down or placed by the undertakers shall be of larger size than that of the existing apparatus in the diverted road or footpath the Company shall only be required to repay to the undertakers such proportion of the cost of providing and laying down or placing the new apparatus as shall represent the cost which would have been incurred by the undertakers in providing and laying down or placing apparatus of similar size to that of the said existing apparatus :

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- (14) Any difference which shall arise under this section between the Company and the undertakers or their respective engineers shall be referred to and settled by an arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

19. The following provision for the protection of Edgar Francis Wicks or other the owner or owners for the time being of the property known as "Daubeney's" Worcester Park in the urban district of The Maldens and Coombe (all of whom are in this section included in the expression "the owner") shall unless otherwise agreed between the Company and the owner apply and have effect (that is to say) :—

For protection of
Edgar
Francis
Wicks.

Notwithstanding anything contained in this Act or shown on the deposited plans the Company shall not acquire any greater part of the land numbered on the deposited plans 39 in the said urban district than that shown by pink colour on the plan signed by George Ellson on behalf of the Company and by the said Edgar Francis Wicks.

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For protec-
tion of
Columbia
Grapho-
phone
Company
Limited.

20. For the protection of the Columbia Graphophone Company Limited their successors and assigns owners or owner for the time being of the sports and recreation ground (in this section referred to as "the said ground") in the urban district of The Maldens and Coombe (all of whom are in this section collectively referred to as "the owners") the following provisions shall notwithstanding anything contained in this Act or shown upon the deposited plans and sections and except so far as may be otherwise agreed in writing between the Company and the owners apply and have effect (that is to say):—

- (1) In this section the expression "the signed plan" means the plan which has been signed in duplicate by Hugh Douglas Peregrine Francis on behalf of the owners and by George Ellson on behalf of the Company one copy of which has been retained by the owners and the other by the Company :
- (2) If the Company shall acquire any of the lands of the owners or any of their interests therein for the purposes of the railway they shall acquire all the interests of the owners in the lands delineated on the signed plan and thereon coloured pink (being part of the lands numbered on the deposited plans 33 in the said urban district and the whole of the lands numbered 35 thereon the fee simple of which belongs to the owners and the whole of the lands numbered 34 thereon over which the owners have certain easements or rights of user) and no greater or less quantity of the said ground :
- (3) The Company shall so construct the railway where the same will pass through or across the said ground that no part of the embankment on the northerly side of the railway shall be north of the line marked A B on the signed plan :
- (4) The Company shall at their own expense construct upon the lands coloured yellow upon and otherwise in accordance with the signed plan a new approach road between the said ground and the Malden Road in substitution for the existing approach road between the same and the said Malden Road shown upon the signed plan and situate on the lands numbered on the deposited

plans 34 in the said urban district the interest of the owners in which is to be acquired by the Company under the provisions of subsection (2) of this section. The said new approach road shall be of a uniform width between the fences of not less than forty feet and be fenced off from the adjacent lands by means of substantial wooden fences not less than six feet in height and shall be constructed with similar materials and in a similar manner as in the case of the said existing approach road. The said new approach road shall be completed and made available for use as an approach road to the said ground before the said existing approach road is interrupted or interfered with and the Company shall so soon as the said new approach road is completed grant to the owners without any rent or other monetary consideration being paid therefor an easement or right of using the same in perpetuity as an approach road to the said ground and also of laying and maintaining therein all such sewers and drains gas and water pipes and mains and electric lines as the owners may from time to time desire to lay and maintain therein :

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- (5) The Company shall within three months after the construction of so much of the railway as may be constructed upon the lands of the owners offer in writing to sell to the owners so much (if any) of the lands acquired by the Company from the owners in accordance with the provisions of subsection (2) of this section as the Company may not require to retain for the purposes of the railway and within one month after the receipt of any such offer the owners shall be entitled to repurchase the same. If the owners shall decide to repurchase the said lands the price to be paid by them to the Company for the same shall bear the same proportion to the price paid by the Company to the owners for the lands to be acquired by the Company from the owners in accordance with subsection (2) of this section as the area of the lands so repurchased bears to the total area of the lands so originally acquired by the Company from the owners :

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- (6) The Company shall prior to the construction of so much of the railway as will pass through the said ground erect suitable unclimbable fences throughout its length between the foot of the northerly embankment thereof and the said ground and shall at all times thereafter maintain the same in good and substantial repair and condition :
- (7) The said new approach road and the fences in this section referred to shall be constructed in accordance with specifications and particulars to be submitted by the Company to the owners and reasonably approved by them prior to the commencement thereof respectively. Provided that if the owners shall fail for one month after the submission of such specifications and particulars for their approval to notify disapproval thereof they shall be deemed to have approved the same :
- (8) So much of the railway as will pass through or across the said ground and all works and conveniences connected therewith shall when commenced be proceeded with continuously and with all reasonable dispatch until completion and the Company will take all reasonable steps to prevent trespassing on the said ground by any workmen or servants either of the Company or of their contractors :
- (9) The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof incorporated with this Act shall not apply to or in relation to any part of the said ground :
- (10) Any improvement or alteration made or any building erected by the owners in or upon the said ground since the first day of November one thousand nine hundred and twenty-nine shall for the purpose of the section of this Act of which the marginal note is " Compensation in case of recently altered buildings " be deemed not to have been made with a view to obtaining or increasing compensation under this Act :

- (11) Any difference which may arise between the Company and the owners under the provisions of this section (other than any difference as to compensation to be paid to the owners for the compulsory acquisition of lands or the injuriously affecting of their property or rights as to which the provisions of the Lands Clauses Acts as incorporated with this Act shall apply) shall be determined by a single arbitrator to be appointed on the application of either party (after notice in writing to the other) by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 or any statutory modification or re-enactment thereof for the time being in force shall apply to any such arbitration. A.D. 1930.

21. Notwithstanding anything contained in this Act or shown on the deposited plans and sections the following provisions for the protection and benefit of the county council of the administrative county of Middlesex (in this section referred to as "the council") shall except so far as may be otherwise agreed in writing between the Company and the council apply and have effect with reference to the exercise of the powers of this Act and the enactments incorporated therewith (that is to say):—

For protection of Middlesex County Council.

- (1) The Company shall not in carrying out widening (No. 2) without the consent in writing of the council alter the level of the roadway of the bridge carrying Syon Lane over the Hounslow loop line or the approaches to such bridge:
- (2) The Company shall give to the council twenty-eight days' previous notice in writing of their intention to commence the said widening (No. 2) by leaving such notice at the office of the council and in so far as the said widening involves any interference with the said bridge plans sections and specifications of the works and if the council fail to signify their approval or disapproval within twenty-eight days after the service of such notice and delivery of the said plans sections and specifications as aforesaid the council shall be deemed to have approved the same. If the council shall signify

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their disapproval of the said plans sections or specifications within the said period of twenty-eight days and the Company and the council fail to agree with regard thereto the difference shall be referred to arbitration as hereinafter provided and the Company shall not commence any works involving interference with the said bridge as aforesaid until the plans sections and specifications thereof have been approved by the council or such difference has been determined in accordance with this section :

- (3) Such works as involve interference with the said bridge shall be constructed in accordance with the plans sections and specifications thereof so approved by the council or in case of difference by the arbitrator hereinafter referred to and under the supervision (if given) and to the reasonable satisfaction of the council and the Company shall not unreasonably interrupt the traffic passing along the said bridge and shall make good all damage or injury whatsoever which shall happen or arise by reason or in consequence of the carrying out of the said widening (No. 2) :
- (4) Upon the completion of the works affecting the said bridge the Company shall at their own cost maintain so much of the structure of the said bridge as shall have been reconstructed or otherwise actually interfered with in the construction of the said works :
- (5) If at any time hereafter the council shall be desirous of widening Syon Lane the Company shall give all proper and reasonable facilities for that purpose :
- (6) The reasonable costs charges and expenses (other than remuneration for work done in the ordinary course of their employment by salaried officers of the council) of or incurred by the council in respect of the necessary supervision by them of any works of the Company under this Act shall be borne and paid to the council by the Company :
- (7) The Company shall not place any hoarding on any part of the said bridge except with the

approval of the council which shall not be unreasonably withheld and for such period and in such manner as may be necessary during and for the purpose of the execution of the works by this Act authorised and no advertisement shall be posted on any such hoarding : A.D. 1930.

- (8) Any difference which may arise between the Company and the council under this section shall be referred to and determined by an engineer to be appointed by the President of the Institution of Civil Engineers on the application of either party after notice in writing to the other and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

22. Notwithstanding anything contained in this Act or in the Acts incorporated therewith or shown on the deposited plans the following provisions for the protection and benefit of the urban district council of Heston and Isleworth (in this section referred to as "the council") shall except so far as may be otherwise agreed in writing between the council and the Company apply and have effect (that is to say) :—

For protection of Heston and Isleworth Urban District Council.

- (1) The Company shall not without the consent of the council under their common seal acquire or take compulsorily or by agreement (a) any part of the lands numbered on the deposited plans 4 46 and 153 in the urban district of Heston and Isleworth (in this section referred to as "the district") or (b) any greater part of the lands numbered on the deposited plans 2 35 and 43 in the district than is coloured red or edged red on the plans signed by John George Carey on behalf of the council and by George Ellson on behalf of the Company :
- (2) The Company shall not without the consent of the council under their common seal exercise the powers of the section of this Act of which the marginal note is "Owners may be required to sell parts only of certain properties" in respect of any one of the properties numbered on the deposited plans 5 to 7 14 to 34 and 55

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to 58 inclusive 60 and 62 in the district so long as the council are interested in that property as mortgagees :

- (3) Before executing any works under the powers of this Act involving interference with Bridge Road the Company shall submit to the council for their reasonable approval plans sections and detailed cross-sections of the works proposed and the works shall not be executed otherwise than in accordance with such plans sections and cross-sections as so approved or settled by arbitration as hereinafter provided :
- (4) In constructing widening (No. 2) across Quaker Lane numbered on the deposited plans 93 in the district the Company shall construct a footbridge having a width of not less than four feet six inches over the Hounslow loop line and the widening (No. 2) :
- (5) In constructing widening (No. 2) the Company shall not without the consent of the council alter the south-eastern approaches to the bridge carrying Syon Lane over the Hounslow loop line so as to interfere with the land belonging to the council and numbered on the deposited plans 153 in the district or any buildings or structures thereon or the footpath adjoining the existing retaining wall of the bridge approach :
- (6) The diversion (under the powers of the section of this Act of which the marginal note is " Power to divert and stop up road and footpaths ") of the footpaths numbered on the deposited plans 3 and 36 in the district shall be carried out in accordance with plans sections and detailed cross-sections to be previously submitted to and reasonably approved by the council and the stopping up and discontinuance of so much of the existing footpaths as will be rendered unnecessary by the new portion of footpaths shown on the deposited plans shall not be carried out until the works shown on the said plans sections and cross-sections have been completed to the reasonable satisfaction of the council :

- (7) The Company shall not divert stop up or interfere with Woodlands Road numbered on the deposited plans 54 in the district or any part thereof without the consent of the council which consent shall not be unreasonably withheld and in giving such consent the council may impose reasonable terms and conditions including conditions as to the alteration and relaying at the expense of the Company of any sewers drains pipes mains cables and apparatus the use of which or access to which may be interfered with by the exercise of the powers of this Act : A.D. 1930.
- (8) In executing the works by this Act authorised the Company shall not interfere with the traffic on any road in the district to any greater extent or for any longer period than shall be reasonably necessary for the purposes of the execution of the said works :
- (9) Any works of the Company executed in pursuance of this Act which will interfere with any street sewer drain sanitary convenience or other work vested in or belonging to the council shall be executed in accordance with plans and sections previously submitted to and reasonably approved by the council :
- (10) In executing the works by this Act authorised the Company shall not place any hoarding on any part of any highway in the district except with the reasonable approval of the council and for such period and in such manner as may be necessary during and for the purpose of the execution of those works and no advertisement shall be posted on any such hoarding :
- (11) If the council within twenty-eight days after the submission to them of any plans sections and cross-sections required to be furnished under this section do not signify their approval or disapproval thereof they shall be deemed to have approved thereof :
- (12) Any difference which may arise between the Company and the council under this section

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shall be referred to and determined by an arbitrator to be appointed on the application of either party (after notice in writing to the other) by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

Company
not to
acquire
certain lands
at Heston
and Isle-
worth.

23. Notwithstanding anything contained in this Act or shown on the deposited plans the Company shall not enter upon take or use any part of the properties in the urban district of Heston and Isleworth numbered on the deposited plans of widening (No. 2) 74 to 91 inclusive and 99 to 148 inclusive.

Inclination
of roads.

24. In altering for the purposes of widening (No. 2) the roads numbered on the deposited plans 95 and 152 in the urban district of Heston and Isleworth the Company may make the same of any inclinations not steeper than one in twenty-five.

Power to
divert and
stop up
road and
footpaths.

25. Subject to the provisions of this Act the Company may divert in the manner shown upon the deposited plans and sections the road and footpaths respectively numbered on the said plans of widening (No. 1) 54 3 and 36 in the urban district of Heston and Isleworth and may stop up and cause to be discontinued as a road or footpath so much of any existing road or footpath as will be rendered unnecessary by the new portion of road or footpath so shown on the said plans :

Provided that notwithstanding the stopping up of Woodlands Road in the said urban district or any part thereof the Postmaster-General may if he so desires (without derogation from any other right vested in him) remove from the said road or any part thereof any telegraphic line of the Postmaster-General which is in under upon along over or across the same and the Company shall pay to the Postmaster-General the expenses incurred by him of and incidental to the removal of the telegraphic line and of any telegraphic line connected therewith which in consequence of such stopping up will be rendered useless and the substitution of a telegraphic line in such other place as the Postmaster-General may reasonably require.

26. Subject to the provisions of this Act the Company may make (and in so far as the same are shown on the deposited plans and sections in the lines and according to the levels as shown) the works hereinafter described with all necessary works and conveniences connected therewith and may exercise the powers hereinafter mentioned and may enter upon take and use the lands delineated upon the deposited plans and described in the deposited book of reference relating thereto (that is to say) :—

In the county of London---

A widening on both sides thereof in the metropolitan borough of Bermondsey of the bridge carrying the Bricklayers Arms branch over Rotherhithe New Road Rotherhithe :

In the county of Middlesex—

A. lengthening and alteration on the north side thereof in the urban district of Brentford and Chiswick of the bridge and approach carrying Clayponds Lane over the Hounslow loop line :

In the county of Surrey—

A lengthening and alteration on both sides thereof in the urban district of Chertsey of the bridge and approaches carrying the road known as Railway Approach over the Weybridge and Virginia Water line;

The Company may stop up and discontinue in the urban district of Mitcham so much of the footpath leading from Beddington Lane to Beddington Corner as extends across and along the Company's property for a distance of 93 yards from that lane and may substitute a new footpath therefor on the south side of the Croydon and Wimbledon Railway :

In the county of Kent—

The Company may stop up and discontinue in the borough of Maidstone so much of the footpath leading from Station Road to Waterside as extends from a point in the said footpath 150 yards west of Station Road to Waterside and may divert the said footpath in a northerly direction.

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Abandon-
ment of
footbridge.

27. The Company may abandon the construction of the footbridge at Mitcham authorised by section 20 (Diversion of footpaths at Mitcham) of the London Brighton and South Coast Railway Act 1914 and that section and section 21 (For protection of the rural district council of Croydon) of the said Act are hereby repealed.

As to works
within
metro-
politan
police
district.

28. Seven days before entering upon breaking up or otherwise interfering with any street or road in connection with the construction of any works under the powers of this Act within the area of the metropolitan police district the Company shall give notice in writing to the Commissioner of Police of the metropolis and make such arrangements with the said Commissioner of Police as may be reasonably necessary so as to cause as little interference with the traffic in such street or road during the construction of such works as may be reasonably practicable.

For pro-
tection of
London
County
Council.

29. Notwithstanding anything contained in this Act or shown on the deposited plans the provisions of paragraph (3) of section 12 (For protection of London County Council) of the Southern Railway Act 1926 are incorporated with and form part of this Act and shall extend and apply to the works by this Act authorised as fully and effectually to all intents and purposes as if those provisions had been repeated and expressly re-enacted in this Act with reference thereto.

Bridge
works in
county of
London.

30.—(1) (a) The Company shall in constructing the widening by this Act authorised of the bridge carrying the Bricklayers Arms branch over Rotherhithe New Road construct and thereafter maintain such widening as girder bridges which shall have a clear headway throughout above the existing surface of the road of not less than sixteen feet six inches and a clear span throughout measured on the square of not less than sixty feet. On completion of the said widening the Company shall add to Rotherhithe New Road so as to increase the present width thereof the lands shown by pink colour on the signed plan marked A hereinafter defined.

(b) In the event of the Company proposing to execute the said widening without reconstructing or altering the existing bridge they shall before commencing

the construction of the said widening give three months' notice to the London County Council (in this section referred to as "the council") of their intention so to do and if within that period the council by notice in writing so require the Company shall reconstruct the said existing bridge with a span of sixty feet and with a headway of not less than sixteen feet six inches above the existing surface of the road. The council shall on completion of the reconstruction in accordance with such requirement pay to the Company on demand the cost incurred by the Company in and in connection with such reconstruction and the Company shall without payment therefor add to Rotherhithe New Road the land shown by green colour on the said signed plan marked A. A.D. 1930.

(c) Any land added to Rotherhithe New Road under the provisions of this subsection shall thereupon be paved or made up by the council as part of the cost of the improvement and be deemed to form part of the highway and shall be cleansed maintained repaired and lighted by the council of the metropolitan borough of Bermondsey.

(2) The bridges hereinbefore in this section referred to and the works in connection therewith shall be of a reasonably ornamental character and design and shall so far as practicable be made and maintained so as to prevent the dripping of water therefrom on any part of any street area or forecourt. In constructing or reconstructing such bridges the Company shall face so much of the abutments thereof as will be more than five feet above the level of the adjoining footway or street with white glazed bricks and shall at all times keep the surface of such bricks in good repair to the reasonable satisfaction of the council of the metropolitan borough of Bermondsey.

(3) The Company shall not execute or commence to execute the construction reconstruction or alteration of the bridges hereinbefore in this section referred to until they have given to the council twenty-eight days' previous notice in writing of their intention to commence the same by leaving such notice at the offices of the council with plans elevations sections and all other necessary particulars of the works and until the council have signified their approval of the same (unless the

A.D. 1930. — council fail to signify such approval or their disapproval or other directions within twenty-eight days after service of the said notice and delivery of the said plans elevations sections and other particulars as aforesaid) and the Company shall comply with and conform to all reasonable directions and regulations of the council in the construction reconstruction or alteration and subsequent maintenance of every such bridge and work and shall save harmless the council against all and every reasonable expense to be occasioned thereby and all such works shall be done to the reasonable satisfaction of the council at the costs charges and expenses in all respects of the Company and all costs charges and expenses to which the council may reasonably be put by reason of the works of the Company whether in the execution of the works the preparation or examination of plans and designs superintendence or otherwise shall be paid to the council by the Company on demand.

(4) In this section "the signed plan marked A" means the plan which is so marked and which has been signed in triplicate by the Right Honourable the Lord Loch the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred whereof one copy has been deposited in the Parliament Office of the House of Lords one copy in the Committee and Private Bill Office of the House of Commons and one copy with the council.

(5) Any difference which may arise between the council and the Company under the provisions of this section shall be referred to and determined by an engineer to be appointed by the President of the Institution of Civil Engineers on the application of either party after notice in writing to the other and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

As to advertisements in county of London.

31. The Company shall not affix or exhibit or permit to be affixed or exhibited upon any part of the lands in the administrative county of London (hereinafter in this section referred to as "the county") acquired under this Act or upon any building hoarding structure or erection (whether during or after the construction of the works by this Act authorised) within view of any public street or open space in the county any placards or advertisements except such as have been approved in writing

by the London County Council and if any such placard or advertisement is affixed or exhibited without such approval the said council and their authorised officers may remove the same but this provision shall not prevent the Company from exhibiting advertisements or placards giving information to the public as to the business of the Company.

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32. For the protection of the Metropolitan Water Board (in this section referred to as "the board") the following provisions shall unless otherwise agreed in writing between the board and the Company have effect (that is to say) :—

For protec-
tion of Met-
ropolitan
Water
Board.

- (1) In this section the expression "the said works" means (a) the railway (b) the widenings and (c) the widening of the bridge carrying the Bricklayers Arms branch over Rotherhithe New Road Rotherhithe by this Act authorised or any one of those works :
- (2) The Company shall construct the bridges or viaducts for carrying the said works over any road or street in which any main of the board is situate so that the abutments thereof shall not encroach upon any part of the road or street and so that the foundations shall be carried down to a depth below the surface of the road or street to a level not higher than the lowest invert of any adjacent main or mains of the board and in no case to a less depth than five feet from the surface of the road or street :
- (3) If in constructing widening (No. 1) the Company divert any part of Woodlands Road the Company shall at their own expense also divert so much of the four-inch main of the board now laid in that road as may be reasonably necessary in consequence of the diversion of that road and such diversion of that main shall include the diversion or provision of all such apparatus appliances connections and conveniences as may reasonably be required by the board for the efficient use and maintenance of such main and its connections to other mains :
- (4) If the Company in constructing widening (No. 2) lengthen alter or reconstruct the structure of the

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bridge carrying Syon Lane over the Hounslow loop line they shall at their own expense provide and thereafter maintain throughout the whole length of the bridge as so lengthened altered or reconstructed and in the approaches thereto accommodation for the existing mains of the board :

The Company shall if reasonably required by the board at the expense of the Company and to the reasonable satisfaction of the board substitute for the existing mains of the board steel pipes encased in concrete of an internal diameter or capacity equal to that of the said existing mains on and over so much of the said bridge as is lengthened altered or reconstructed and in the approaches thereto (so far as such approaches are altered) :

- (5) The Company shall in constructing the lengthening and alteration on the north side thereof of the bridge and approach carrying Clayponds Lane in the urban district of Brentford and Chiswick over the Hounslow loop line provide throughout the whole length of the said bridge and approach as so lengthened and altered accommodation for a main of an internal diameter of six inches which the board may hereafter desire to place in the same and the board shall repay to the Company the additional cost (if any) incurred by the Company in making provision for such accommodation :
- (6) The accommodation referred to in subsections (4) and (5) of this section shall be provided and constructed in accordance with plans sections and particulars to be previously submitted to and reasonably approved by the board :

Provided that if within one month after the receipt of any such plans sections and particulars the board shall not have intimated to the Company their disapproval thereof or made any requirements with respect thereto they shall be deemed to have approved the same :

- (7) Not less than twenty-eight days before commencing any of the said works in any street or

road in or under which any main pipe work or apparatus (in this section referred to as "apparatus") of the board is situate the Company shall deliver to the board plans sections and descriptions of such works describing the proposed manner of executing the same and showing the whole of the works proposed to be executed in connection therewith :

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- (8) The board may at any time within twenty-eight days of the receipt of such plans sections and descriptions by notice in writing intimate to the Company their reasonable requirements so far as the said works may affect the board's apparatus and the board may require the Company to carry out their works in such a manner and of such materials as may be reasonably specified and to support the board's apparatus temporarily or otherwise by cement concrete or other like substance Provided that if the board shall not within the said period of twenty-eight days give any such notice in writing to the Company as aforesaid they shall be deemed to have no requirements to intimate to the Company :
- (9) The Company shall not construct the said works except in accordance with the said plans sections and descriptions delivered to the board and shall carry out all works in connection with the board's apparatus as may be reasonably approved by the board or settled by arbitration :
- (10) Not less than twenty-eight days before commencing the construction of any of the said works the Company shall give to the board notice in writing of their intention to commence such construction and shall state in such notice the place and time at which they propose so to commence and if within fourteen days after the receipt of such notice the board shall give notice to the Company of their intention themselves to lay down any substituted apparatus or to execute any other works to or in connection with any apparatus as provided by this section it shall be lawful for the board instead of the Company to lay down such apparatus or execute such

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works and the cost reasonably incurred by them in so doing shall on demand be repaid to the board by the Company :

- (11) The Company shall not raise sink or otherwise alter the position of any apparatus of the board or alter the level of any street road or footpath in which any such apparatus is situate so as to leave over such apparatus a covering of less than three feet where the covering now existing is not less than three feet or less than the existing covering where such existing covering is less than three feet unless the Company shall in each case protect such apparatus from frost or injury by artificial covering to the reasonable satisfaction of the board or more than five feet where the covering now existing does not exceed five feet or more than the existing covering where such existing covering exceeds five feet unless the Company in either of such last-mentioned cases provide special means of access to the same to the reasonable satisfaction of the board :
- (12) The Company shall not except with the consent of the board (which consent shall not be unreasonably withheld) execute or do any work which may involve any interference with the continuous supply of water by the board during the months of May June July August and September in any year :
- (13) Where the Company under the powers of this Act stop up temporarily any street or road or part of a street or road in which any apparatus of the board is situate the officers and servants of the board shall have free and uninterrupted access to and along such street or road or part of a street or road for the purpose of enabling them to inspect repair or renew any such apparatus and the Company shall provide all necessary facilities for that purpose :
- (14) The board may where reasonably necessary employ watchmen or inspectors to watch any of the said works to be executed by the Company whereby the board's apparatus will or may be interfered with or affected and the reasonable expenses thereof shall be borne by the Company :

- (15) The expenses of all repairs or renewals of the board's apparatus or any works in connection therewith which may at any time be rendered necessary by or in consequence of the acts or defaults of the Company their contractors agents workmen or servants or any person in the employ of them or any or either of them in the execution of the said works or rendered necessary by reason of any subsidence resulting from the said works whether during the construction of such works or at any time within two years after the completion of the same shall be borne by the Company : A.D. 1930.
- (16) Any difference which arises between the board and the Company under this section (other than a difference as to the construction or meaning of the said section) shall be referred to and settled by an arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration :
- (17) The provisions of this section shall be in addition to and not in substitution for or derogation of any other provisions of this Act to the benefit of which the board would otherwise have been entitled.

33. Nothing in this Act shall extend to or authorise any interference with any electric lines or other works of any authorised undertaker (including the London Power Company Limited) except in accordance with and subject to the provisions of section 15 of the Electric Lighting Act 1882 and section 17 of the schedule to the Electric Lighting (Clauses) Act 1899. For protection of undertakers under Electricity (Supply) Acts.

34. In constructing the works by this Act authorised the Company may deviate laterally from the lines of any of the said works shown on the deposited plans thereof to the extent of the limits of deviation marked thereon and subject as hereinafter provided may deviate from the levels of the railway and widenings shown on the deposited sections thereof in accordance with the provisions of the Railways Clauses Consolidation Act 1845 and may deviate from the levels of the other works Power to deviate in construction of works.

A.D. 1930. shown on the deposited sections thereof to any extent not exceeding five feet upwards or downwards. Provided that in constructing the railway between the points marked on the deposited sections 5 miles 3 furlongs and 6 miles 7 furlongs the Company may deviate from the levels thereof shown on those sections to any extent not exceeding ten feet upwards and five feet downwards.

Under-
pinning of
houses near
works.

35. And whereas in order to avoid in the execution and maintenance of any works authorised by this Act injury to the houses and buildings within one hundred feet of such works it may be necessary to underpin or otherwise strengthen the same. Therefore the Company at their own costs and charges may and if required by the owners or lessees of any such house or building shall subject as hereinafter provided underpin or otherwise strengthen the same and the following provisions shall have effect (that is to say):—

- (1) At least ten days' notice shall unless in case of emergency be given to the owners lessees and occupiers or by the owners or lessees of the house or building so intended or so required to be underpinned or otherwise strengthened:
- (2) Each such notice if given by the Company shall be served in manner prescribed by section 19 of the Lands Clauses Consolidation Act 1845 and if given by the owners or lessees of the premises to be underpinned or strengthened shall be sent to the principal office of the Company:
- (3) If any owner lessee or occupier of any such house or building or the Company as the case may require shall within seven days after the giving of such notice give a counter-notice in writing that he or they as the case may be disputes or dispute the necessity of such underpinning or strengthening the question of the necessity shall be referred to the arbitration of an engineer to be agreed upon or in case of difference appointed at the instance of either party by the Minister of Transport and the Arbitration Act 1889 shall apply to the reference:
- (4) The arbitrator shall forthwith upon the application of either party proceed to inspect such house or building and determine the matter

referred to him and in the event of his deciding that such underpinning or strengthening is necessary he may and if so required by such owner lessee or occupier shall prescribe the mode in which the same shall be executed and the Company may and shall proceed forthwith so to underpin or strengthen the said house or building :

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- (5) The Company shall be liable to compensate the owners lessees and occupiers of every such house or building for any loss or damage which may result to them by reason of the exercise of the powers granted by this section :
- (6) If in any case in which any house or building shall have been underpinned or strengthened on the requisition of the Company such underpinning or strengthening shall prove inadequate for the support or protection of the house or building against any further injury arising from the execution or use of the works of the Company then and in every such case unless such underpinning or strengthening shall have been done in pursuance of the requirements of and in the mode prescribed by the arbitrator the Company shall make compensation to the owners lessees and occupiers of such house or building for such injury provided the claim for compensation in respect thereof be made by such owners within twelve months and by such lessees or occupiers within six months from the discovery thereof :
- (7) Nothing in this section contained nor any dealing with any property in pursuance of this section shall relieve the Company from the liability to compensate under section 68 of the Lands Clauses Consolidation Act 1845 or under any other Act :
- (8) Every case of compensation to be ascertained under this section shall subject to the provisions of this Act be ascertained according to the provisions of the Lands Clauses Acts :
- (9) Nothing in this section shall repeal or affect the application of section 92 of the Lands Clauses Consolidation Act 1845.

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Repair of
roads where
level not
permanently
altered.

36. Notwithstanding anything contained in section 46 of the Railways Clauses Consolidation Act 1845 the Company shall not be liable to maintain the surface of any road or public highway which shall be carried over the railway by a bridge or bridges or the immediate approaches thereto except so far as the level of such road highway or approaches is permanently altered so as to increase the gradient. Provided that nothing in this section shall relieve the Company from any liability which they were under immediately prior to the passing of this Act for the maintenance of the surface of any such highway or approach.

Power to
Company to
acquire
lands.

37. Subject to the provisions of this Act the Company in addition to the other lands which they are by this Act authorised to acquire may for any purposes connected with or ancillary to their undertaking enter upon take use and appropriate all or any of the lands hereinafter described or referred to and delineated on the deposited plans and described in the deposited book of reference relating thereto (that is to say) :—

In the county of Middlesex—

Lands in the urban district of Heston and Isleworth on both sides of and adjoining the Hounslow loop line and extending between Quaker Lane and Syon Lane;

Lands in the urban district of Staines on the south-west side of and adjoining the Windsor line and extending between points respectively 122 and 266 yards north-west of the bridge carrying Colnebrook Road over that line :

In the county of Surrey—

Lands in the parish of Cuddington in the rural district of Epsom on both sides of and adjoining the Wimbledon and Epsom railway and extending between points respectively 400 and 616 yards north-east of Kingston Road :

In the county of East Sussex—

Lands in the county borough of Hastings known respectively as No. 19 Cornwall Terrace and No. 58 Havelock Road and lands on the north-west side of Devonshire Road and adjoining such last-mentioned premises :

In the county of Dorset—

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Lands in the urban district of Sherborne on the north-west side of and adjoining the Company's goods yard at Sherborne Station and extending between points respectively 77 and 230 yards south-west of the goods shed at that station :

In the county of Devon—

Lands in the city of Exeter on the south-west side of and adjoining New North Road bridge and on the south-east side of and adjoining the Company's main line.

38. The powers granted by this Act for the compulsory purchase of lands shall cease on the first day of October one thousand nine hundred and thirty-three.

Period for compulsory purchase of lands.

39. Where this Act authorises the stopping up of a road or footpath or portion thereof without providing a substitute such stopping up shall not take place except where the same is situate upon property of the Company without the consent of the owners lessees and occupiers of the houses and lands abutting on both sides thereof and from and after such stopping up all rights of way over or along the road or footpath or portion authorised to be stopped up shall be extinguished and the Company may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near the railway appropriate and use for the purposes of their undertaking the site of the road or footpath or portion thereof so stopped up :

Stopping up roads and footpaths without providing substitute.

Provided that the Company shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

40. Where this Act authorises the diversion of a road or footpath or the making of a new road or footpath and the stopping up of an existing road or footpath or portion thereof such stopping up shall not take place until such new road or footpath is completed to the satisfaction of the road authority and is open for public use or in case of difference between the Company and the

Stopping up roads and footpaths in case of diversion.

A.D. 1930. road authority until two justices shall have certified that the new road or footpath has been completed to their satisfaction and is open for public use.

Before applying to the justices for their certificate the Company shall give to the road authority of the district in which the existing road or footpath is situate seven days' notice in writing of their intention to apply for the same.

As from the completion to the satisfaction of the road authority of the new road or footpath or as from the date of the said certificate as the case may be all rights of way over or along the existing roads or footpaths or portions authorised to be stopped up shall be extinguished and the Company may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near the railway appropriate and use for the purposes of their undertaking the site of the road or footpath or portion thereof stopped up as far as the same is bounded on both sides by lands of the Company :

Provided that the Company shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Further provision as to repair of roads and footpaths.

41. Subject to the provisions of the section of this Act of which the marginal note is " Repair of roads where level not permanently altered " any road or footpath or portion of road or footpath made diverted or altered under the authority of this Act (except the structure carrying any such road or footpath over any railway of the Company which structure shall unless otherwise agreed be maintained by and at the expense of the Company) shall when made and completed unless otherwise agreed be maintained by and at the expense of the body or persons liable to maintain roads or footpaths of the same nature and in the same parish district borough or city as the road or footpath or portion of road or footpath in question.

As to private rights of way over lands acquired.

42. All private rights of way over any lands which shall under the powers of this Act be acquired compulsorily shall as from the date of such acquisition be extinguished Provided that the Company shall make full compensation

to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement. A.D. 1930.

43. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Company of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Company and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto. Therefore the following provisions shall have effect :—

Owners may be required to sell parts only of certain properties.

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the First Schedule to this Act and whereof a portion only is required for the purposes of the Company or each or any of them are in this section included in the term "the owner" and the said properties are in this section referred to as "the scheduled properties":
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Company that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Company such portion only without the Company being obliged or compellable to purchase the whole the Company paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:
- (3) If within such twenty-one days the owner shall by notice in writing to the Company allege that such portion cannot be so severed the tribunal to whom the question is referred shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without

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material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Company have compulsory powers of purchase) can be so severed :

- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Company the portion which the tribunal shall have determined to be so severable without the Company being obliged or compellable to purchase the whole the Company paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :
- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner :
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Company may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :
- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Company in case they shall not

withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit. A.D. 1930.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

44. Notwithstanding anything contained in this Act or in any Act wholly or partly incorporated herewith the Company shall not be required to purchase any railway tramway tramroad river canal navigation watercourse drain dyke or sewer or any part thereof respectively which may be crossed or interfered with in constructing any of the works authorised by this Act but they may acquire such easements and rights in over or under any such railway tramway tramroad river canal watercourse drain dyke or sewer as they may require for making maintaining working and using any such work and may give notice to treat in respect of such easements and rights describing the nature thereof and (subject to the foregoing provisions of this section and to the other provisions of this Act) the provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition of such easements and rights as fully as if the same were lands within the meaning of those Acts. Power to acquire easements compulsorily in certain cases.

45. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting Power to certain owners to grant easements.

A.D. 1930. — any such lands and the provisions of the Lands Clauses Acts with respect to lands and rentcharges so far as the same are applicable in that behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to enter upon property for survey and valuation.

46. The Company and their surveyors officers contractors and workmen may at all reasonable hours in the daytime upon giving in writing for the first time twenty-four hours' and afterwards twelve hours' previous notice enter upon and into the lands and premises by this Act authorised to be taken and used by them for the purpose of surveying and valuing the said lands and premises without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands and premises.

Costs of arbitration in certain cases.

47.—(1) The tribunal to whom any question of disputed purchase money or compensation under this Act is referred shall if so required by the Company award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Company by the claimant giving sufficient particulars and in sufficient time to enable the Company to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time shall have been delivered and that the Company have been prejudiced thereby the tribunal shall have power to decide whether the claimant's costs or any part thereof shall be borne by the claimant. Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Company to amend the statement in writing of the claim delivered by him to the Company in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the Company if they object to the amendment and such amendment shall be subject to such terms enabling the Company to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case. Provided also that this subsection shall be applicable only in cases

where the notice to treat under the Lands Clauses Consolidation Act 1845 either contained or was endorsed with a notice of the effect of this subsection.

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(2) Section 34 of the Lands Clauses Consolidation Act 1845 for the purposes of its application to this Act shall be read and have effect subject to the following proviso in all cases in which notice of the effect of such proviso accompanies any offer of purchase money and compensation made by the promoters (namely) :—

Provided that in the event of a party to whom a sum shall have been offered by the promoters at least ten days before the commencement of the hearing before the arbitrator failing within ten days of the making of the offer to notify the promoters in writing that he accepts the same all the costs and expenses of the promoters of and incidental to the arbitration incurred by them after the date of the offer shall in the event of his subsequently accepting such offer be borne by him including any fees and expenses of the arbitrator.

48. In settling any question of disputed purchase money or compensation for lands acquired by the Company under the powers of this Act the tribunal settling the same shall not award any sum of money for or in respect of any improvement or alteration made or any building erected after the first day of November one thousand nine hundred and twenty-nine if in the opinion of the tribunal the improvement alteration or building in respect of which the claim is made was made or erected with a view to obtaining or increasing compensation nor in the case of any estate or interest in the lands created after the said date which in the opinion of the tribunal was created with a view to obtaining or increasing compensation shall any sum of money be awarded so as to increase the total amount of compensation which would otherwise have been required to be paid in respect of the acquisition by the Company of such lands.

49. The Company may enter into and carry into effect agreements with the parties having the charge management or control of the roads streets footpaths or highways or any of them portions whereof shall under	Power to make agreements with road authorities
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A.D. 1930. the provisions of this Act be altered or stopped up with
— reference to the construction or contribution towards
the costs of such alteration or of any new road street
footpath or highway to be substituted therefor and with
reference to any other matters relating thereto and if so
agreed the Company may delegate to such parties as
aforesaid the power of constructing and maintaining all
or any of such alterations or new roads streets footpaths
or highways in which they may be interested including
the structure of any bridge over or under any railway
and any expenses incurred by a local authority under and
for any of the purposes of this section shall be deemed to
be expenses incurred in the execution and under and for
the purposes of the Public Health Act 1875 and any
expenses incurred by a county council under this section
for a purpose to which capital is properly applicable shall
be deemed to be and be defrayed as expenses incurred
by the county council in exercise of their powers as a
highway authority and the enactments relating to such
expenses including the provisions thereof as to borrowing
shall apply accordingly.

As to private
street
expenses in
certain
cases.

50.—(1) The Company shall be deemed not to be
an owner or occupier for the purposes of section 150 of
the Public Health Act 1875 in respect of any land acquired
or used by the Company under or in pursuance of the
powers or for the purposes of this Act (a) upon which
any street as defined by the Public Health Acts and not
being a highway repairable by the inhabitants at large
shall wholly or partially front adjoin or abut and (b) which
shall at the time of the laying out of such street be used
by the Company solely as a part of their lines of railway
or sidings stations or works and shall have no direct
communication with such street.

(2) The expenses incurred by any urban authority
under the powers of the said section which but for this
provision the Company would be liable to pay shall be
repaid to the urban authority by the owners of the
premises fronting adjoining or abutting on the said street
other than the Company and in such proportions as shall
be settled by the surveyor of the urban authority.

(3) In the event of the Company subsequently
making a communication with such street they shall
notwithstanding such repayment as last aforesaid pay

to the urban authority the expenses which but for the foregoing provision the Company would in the first instance have been liable to pay. A.D. 1930.
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(4) The urban authority shall divide among the owners for the time being other than the Company the amount so paid by the Company to the urban authority less the costs and expenses attendant upon such division in such proportion as shall be settled by the said surveyor whose decision shall be final and conclusive.

(5) This section shall not apply to any street existing at the passing of this Act.

51. The period now limited by the Southern Railway Act 1925 for the completion of— Extension of time for completion of works.

(a) Railways Nos. 3 4 5 and 6 and widenings Nos. 2 3 4 and 5 originally authorised by the London Brighton and South Coast Railway Act 1903; and

(b) Railway No. 2 and the graving dock (Work B) and sea walls or embankments (Works B1 and B2) and channel originally authorised by the South Western Railway Act 1909;

is hereby extended until the first day of October one thousand nine hundred and thirty-five and the said Acts of 1903 and 1909 shall be read and construed as if the period limited by this section for the completion of the said works had been the period limited by the said Acts respectively for the completion of such works.

52. Notwithstanding anything contained in the London Brighton and South Coast Railway Act 1903 (in this section referred to as “the Act of 1903”) or any subsequent Act (including this Act) and notwithstanding anything shown upon the deposited plans referred to in the Act of 1903 (in this section referred to as “the 1903 plans”) the following provisions for the protection of the county council of East Sussex (in this section referred to as “the county council”) shall unless otherwise agreed in writing between the county council and the Company apply and have effect (that is to say) :— For protection of East Sussex County Council.

(1) In constructing widening (No. 2) authorised by the Act of 1903 the Company shall not divert in the manner shown on the 1903 plans the

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road numbered on those plans 45 in the parish of Balcombe but shall carry the same over the existing railway of the Company and the said widening (i) (in the event of the county council giving the notice referred to in paragraph (b) of subsection (2) of this section) between the boundaries which are shown by red dotted lines upon the plan marked " Plan No. 1 " which has been signed in duplicate by George Ellson on behalf of the Company and by Herbert Edgar Lunn on behalf of the county council or (ii) (in the event of the county council not giving such notice) then between the boundaries which are shown by green dotted lines upon the plan marked " Plan No. 2 " which has been similarly signed in duplicate by the said George Ellson and the said Herbert Edgar Lunn :

- (2) If prior to the construction of widening (No. 2) or widening (No. 4) (as the case may be) authorised by the Act of 1903 the bridge carrying any road referred to in the table set out in paragraph (b) of this subsection has not been reconstructed so as to have the width set out in the last column of that table in respect of such bridge then the following provisions shall apply :—

(a) Before commencing the construction of the said widening (No. 2) or widening (No. 4) (as the case may be) the Company shall give not less than three months' notice in writing to the county council of their intention so to do;

(b) If within the period referred to in paragraph (a) of this subsection the county council by notice in writing require the Company to reconstruct the bridge carrying any road referred to in the following table over the existing railway of the Company so as to have a width between the parapets thereof measured on the square not exceeding the width set opposite to such road in the said table the Company shall comply with such requirement and shall at their own

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expense construct the bridge carrying the road over the said widening (No. 2) or the said widening (No. 4) (as the case may be) of the same width between the parapets as such reconstructed bridge :—

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Widening.	Road.	No. on the 1903 plans.	Square width of bridge between parapets.
No. 2 -	Cuckfield to Horley	45 in parish of Balcombe	50 feet.
No. 2 -	Balcombe to Handcross	24 in parish of Balcombe	30 feet.
No. 4 -	Station Road --- Burgess Hill	56 in parish of Keymer Urban	50 feet.
No. 4 -	Rookery Lane	9 in parish of Keymer	40 feet.

(3) If prior to the construction of the said widening (No. 4) the bridge carrying the existing railway of the Company over Vale Bridge Road (numbered on the 1903 plans 17 in the parish of Keymer) has not been reconstructed so as to have a clear span measured at right angles to the road of forty feet between the abutments and a clear headway of sixteen feet above the existing surface of the road and if within the period referred to in paragraph (a) of subsection (2) of this section the county council by notice in writing require the Company to reconstruct the said bridge so as to have a span and headway not exceeding the span and headway above mentioned the Company shall comply with such requirement and shall at their own expense construct the bridge carrying the said widening (No. 4) over the road of the same span and headway as such reconstructed bridge The said bridge shall be constructed and maintained to the reasonable satisfaction of the county council and so as to prevent so far as is practicable the dripping of water therefrom :

(4) After the completion of the reconstruction of any bridge in pursuance of any requirement of

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the county council under this section the county council shall pay to the Company the additional cost reasonably incurred by them in such reconstruction in consequence of such requirement :

- (5) The Company shall at their own cost and to the reasonable satisfaction of the county council maintain any bridge reconstructed in accordance with the provisions of this section but the county council shall at their own cost maintain the roadway and any footways on any bridge (and the approaches thereto) reconstructed in accordance with subsection (2) of this section :
- (6) (a) If prior to the construction of the said widening (No. 2) or widening (No. 4) (as the case may be) the bridge carrying any road referred to in the table set out in paragraph (b) of subsection (2) of this section over the existing railway of the Company has been reconstructed so as to have a width not exceeding that set out in the last column of the said table the Company shall at their own expense construct the bridge carrying the same road over the said widening (No. 2) or widening (No. 4) (as the case may be) of the same width between the parapets as such reconstructed bridge ;
- (b) If prior to the construction of the said widening (No. 4) the bridge carrying the existing railway of the Company over Vale Bridge Road has been reconstructed so as to have a span and headway not exceeding the span and headway referred to in subsection (3) of this section the Company shall at their own expense construct the bridge for carrying the said widening over that road of the same span and headway as such reconstructed bridge :
- (7) Any difference which shall arise between the county council and the Company under the foregoing provisions of this section shall be referred to and determined by an engineer to be appointed by the President of the Institution of Civil Engineers on the application of either

party after notice in writing to the other and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference: A.D. 1930.

- (8) Section 27 (For the protection of the rural district council of Cuckfield) of the Act of 1903 shall be read and have effect as if the county council were referred to therein in lieu of the rural district council of Cuckfield and the benefit of that section shall extend and apply to the county council accordingly.

53. The period now limited by the Act of 1927 for the compulsory purchase of the lands in this section referred to is hereby extended until the first day of October one thousand nine hundred and thirty-three but on that date the powers for such compulsory purchase shall cease except so far as such powers shall then have been exercised. Extension of time for compulsory purchase of lands.

The said lands are—

- (a) Lands required for the purposes of or in connection with railway (No. 2) the widening of the Southampton and Dorchester Railway and new roads (Nos. 2 3 and 4) authorised by the Act of 1924;
- (b) Lands in the county borough of Southampton and in the parishes of Dibden and Marchwood in the rural district of New Forest by the Act of 1924 authorised to be acquired and described in section 45 (Power to Company to acquire lands) of that Act;
- (c) Lands required for the purposes of or in connection with the reclamation or quay walls (Nos. 1 and 2) jetty graving docks (Nos. 1 and 2) railway new road and culverts (Nos. 1 to 7) and widening (No. 1) authorised by the Act of 1927;
- (d) Lands required for the purposes of or in connection with (i) the widening in the metropolitan borough of Lambeth of the viaduct carrying the Victoria to Herne Hill line at Brixton Station (ii) widenings of bridges in the metropolitan borough of Camberwell (iii) the new road in the borough of

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Richmond in the county of Surrey and (iv) the footpath and subway in the city of Rochester authorised by the Act of 1927; and

- (e) Lands in the borough of Christchurch authorised to be acquired by the Act of 1927 and described in section 54 (Power to Company to acquire lands) of that Act.

Power to purchase additional lands by agreement.

54. The Company may from time to time in addition to the lands authorised to be compulsorily taken by them for the purposes of this Act and of the several Acts from time to time relating to their undertaking contract with any party willing to sell the same for the purchase of any lands for any of the purposes stated in section 45 of the Railways Clauses Consolidation Act 1845 and may hold the same and any lands which the Company have already acquired for any of the said purposes.

For the purposes of this section the expression "the Company" means and includes in addition to the Company any joint committee now or hereafter incorporated or constituted by Act of Parliament on which the Company may be represented and as regards any undertaking now or hereafter belonging to the Company jointly with any other company or companies means and includes the Company and such other company or companies.

Application of certain sections of Acts of 1924 and 1913.

55.—(1) The provisions of section 63 of the Act of 1924 (which authorises the leasing etcetera of lands and premises purchased or acquired by the Company and others prior to the passing or under the powers of that Act) and of section 91 of the Act of 1924 (which authorises the building etcetera on and over lands acquired or held by the Company and others under the powers of that Act or any previous Act) shall extend and apply to any lands or premises acquired or held or which may hereafter be acquired or held by the Company under or in pursuance of the powers of this Act.

(2) The provisions of section 49 (For the protection of Windsor Castle &c.) of the South Western Railway Act 1913 shall apply to any buildings erected under the powers of this section.

56.—(1) The agreement made the twenty-ninth day of June one thousand nine hundred and twenty-nine between the Company of the one part and the county council of the administrative county of Kent of the other part set forth in the Second Schedule to this Act is hereby confirmed and made binding on the parties thereto and shall be carried into effect accordingly.

(2) (a) Section 50 of the Sittingbourne and Sheerness Railway Act 1856 shall be read and have effect as if the reference to “ toll gates ” and “ toll houses ” were omitted therefrom.

(b) Sections 52 54 to 69 73 and 75 and the words “ upon payment of the tolls by this Act granted ” in section 53 of the said Act are hereby repealed.

(c) Section 9 (except so much thereof as restricts the use of the road bridge by the machines and vehicles referred to in the second proviso to that section) and section 10 of the South Eastern and London Chatham and Dover Railways Act 1909 are hereby repealed.

57.—(1) Notwithstanding anything contained in the Harbours Docks and Piers (Temporary Increase of Charges) Acts 1920 to 1922 or section 3 of the Southern Railway Harbours Docks and Piers (Temporary Increase of Charges) Order 1929 (in this section referred to as “ the Order of 1929 ”) the provisions of sections 1 and 2 of the Order of 1929 shall subject as in this section provided remain and continue in force after the first day of October one thousand nine hundred and thirty.

(2) The Company shall keep open for public inspection at their principal office at every harbour mentioned in Schedule I to the Order of 1929 the book or list specifying the rates dues and charges to which the Order of 1929 relates and which were in operation at such harbour on the thirty-first day of December one thousand nine hundred and thirteen and the conditions attaching to any such rates dues and charges.

(3) If it is represented by application in writing to the Minister of Transport (in this section referred to as “the Minister”)—

(a) by any chamber of commerce or shipping or any representative body of traders or any dock or

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harbour authority or any person who in the opinion of the Minister is a proper person for the purpose; or

(b) by the Company;

that under the circumstances then existing the authorised rates dues and charges or any of them should be revised the Minister may if he thinks fit at any time after the first day of October one thousand nine hundred and thirty make an order revising the authorised rates dues and charges referred to in the application or any of them and may fix the date as from which such order shall take effect and thenceforth such order shall remain in force until the same expires or is revoked or modified by a further order of the Minister made in pursuance of this section. Provided that before making an order under this section the Minister shall cause an inquiry to be held with reference thereto in pursuance of the Board of Trade Arbitrations &c. Act 1874 as applied by this section.

(4) On any application being made to the Minister under this section he may require the Company to show cause why the rates dues and charges to which such application relates should not be submitted for revision to the body or persons holding an inquiry for the purposes of this section and the applicant shall have access to any information furnished to the Minister by the Company when showing cause.

(5) The provisions of Part I of the Board of Trade Arbitrations &c. Act 1874 shall apply for the purposes of subsection (3) of this section—

(a) as if the Minister were referred to therein in lieu of the Board of Trade;

(b) as if the person or persons duly authorised to hold any inquiry thereunder were the rates advisory committee constituted under the Ministry of Transport Act 1919 or any sub-committee thereof to which the said advisory committee may under section 2 of the Harbours Docks and Piers (Temporary Increase of Charges) Act 1920 have delegated their powers or in the event of the said advisory committee ceasing to exist some

persons with similar qualifications to be appointed A.D. 1930.
for the purpose by an order of the Minister
under section 2 of the said Act of 1874; and

- (c) as if in section 4 of the said Act of 1874 the words
“ under the seal of the Minister of Transport ”
were substituted for the words “ by writing
“ under the hand of the President or of one of
“ the secretaries of the Board.”

(6) An application made to the Minister under this section shall be accompanied by such information and particulars as the Minister may consider relevant certified in such manner as he may require and the Minister and the body or persons holding an inquiry for the purposes of this section may call for such information documents and accounts as they may consider relevant and may hear such witnesses as they shall think fit and shall have power to take evidence on oath and for that purpose may administer oaths.

(7) It shall be the duty of any applicant or objectors furnishing any information particulars documents or accounts accompanying any application under this section or accompanying any objection thereto or called for either by the Minister or by the body or persons holding an inquiry for the purposes of this section to call evidence at the inquiry in support of such information particulars documents or accounts.

(8) The Minister or the body or persons holding an inquiry for the purposes of this section in considering any proposed modification of any rates dues or charges may take into consideration among other matters the effect which such modification would be likely to have upon the rates dues and charges levied or made or the traffic dealt with at any other harbour dock or pier whether forming part of the undertaking of the Company or not.

(9) Any chamber of commerce or shipping or any representative body of traders or any dock or harbour authority or any person who in the opinion of the Minister is a proper person for the purpose shall if they or he or the interests they represent or he represents are directly affected thereby or any dock or harbour authority who appear to the Minister to be likely to be affected

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A.D. 1930. by the decision on the application shall be entitled to
— be heard on any application to increase or reduce rates
dues or charges.

(10) Where upon an application for revision of authorised rates dues and charges or an authorised rate due or charge an order has been made or the Minister has decided not to make an order no further application for a revision of the rates dues and charges or rate due or charge to which the application related shall be made within twelve months from the date of such order or decision as the case may be.

Application of
certain pro-
visions of
Hackney
Carriage Act
1831 to station
premises.

58. Any premises comprising a railway station of the Company and the precincts thereof and the approaches thereto which are situate within the limits of the London Hackney Carriage Act 1831 as amended by subsequent Acts shall be deemed for the purposes of section 35 of that Act to be a street or place.

Provisions
as to
Brighton
Pension
Fund.

59.—(1) Section 6 (Application of income and guarantee of fund by Company) of the London Brighton and South Coast Railway (Pensions) Act 1899 is hereby repealed.

(2) All moneys property and assets now belonging to or standing to the credit of the London Brighton and South Coast Railway Pension Fund (in this section referred to as "the fund") shall together with all future moneys of and additions to the fund under the rules thereof or any Act relating thereto together with the interest payable on the fund be held by the Company in irrevocable trust for the purpose of meeting the obligations of the fund.

(3) All moneys of the fund shall be held by the Company and shall be a debt due from them and a charge upon the general undertaking of the Company and the amounts from time to time standing to the credit of the fund may be applied by the Company to the general purposes of their undertaking.

(4) Notwithstanding anything contained in any Act of Parliament scheme rules or regulations relating to the fund such fund and all moneys property and assets thereof shall be available for and may from time to time be applied by the Company in the payment of the pensions and other liabilities of the fund.

(5) The directors of the Company shall appoint an actuary or actuaries to hold office so long as the directors shall from time to time resolve who shall make an investigation of the financial position of the fund as at the thirty-first day of December one thousand nine hundred and thirty-four and thereafter at intervals of five years or such less interval as the directors may from time to time resolve and shall report thereon to the directors who shall furnish a copy of such report to the managing committee of the fund. A.D. 1930.

(6) In addition to the contributions which the Company are required to make to the fund under section 5 (Company's contributions) of the said Act of 1899 they shall make such payments to the fund as may from time to time in the opinion of the said actuary be necessary to secure the solvency of the fund and such payments may be either sums in gross or annual or periodical payments spread over a term of years as may be approved by the said actuary.

(7) All amounts or sums of money which the Company are by this Act or the rules of the fund required or authorised to pay or provide shall be charged to and paid or provided out of the gross revenue of their undertaking as part of the working expenses in the year in which the same are so paid or provided.

60.—(1) The Company may in addition to any other moneys which they are authorised to raise or borrow borrow on mortgage of their undertaking any sums not exceeding in the whole two million pounds without being required to obtain the certificate of a justice under section 40 of the Companies Clauses Consolidation Act 1845. Power to borrow further moneys.

(2) The directors of the Company may from time to time by virtue of this section and without further or other sanction or authority raise the said sums so authorised to be borrowed either by borrowing the same on mortgage of the undertaking of the Company or by the creation and issue of debenture stock whether redeemable or irredeemable as they may decide and at such rate of interest and on such terms and conditions as they may determine at the time of the borrowing thereof or of the issue of such stock.

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(3) The amount to be raised under this section shall not exceed the said sum of two million pounds after taking into account any premiums or discounts obtained or allowed on any issue of debenture stock thereunder.

(4) The directors of the Company may in exercising the powers of this section grant mortgages or dispose of debenture stock at such times to such persons and on such terms and conditions and in such manner as they may think advantageous to the Company.

(5) Subject to the foregoing provisions of this section Part III of the Companies Clauses Act 1863 and section 25 (Debenture stock) of the Railways (Southern Group) Amalgamation Scheme 1922 shall apply to any mortgages granted and any debenture stock created and issued under the powers of this section as if they were granted or created and issued by the Company.

Application
of section
107 of Act of
1924.

61. Section 107 (Redeemable preference and debenture stock) of the Southern Railway Act 1924 shall extend and apply to any redeemable preference stock and debenture stock of the Company which may from time to time be issued by the directors of the Company in pursuance of any Act of Parliament.

Appoint-
ment of
receiver.

62. Every provision in any Act or scheme having the force of an Act of Parliament passed prior to the passing of this Act whereby the Company are authorised to raise by borrowing money for the purposes of their undertaking with respect to the appointment of a receiver for enforcing payment by the Company of arrears of interest or principal or principal and interest shall be and the same is hereby repealed but without prejudice to any appointment which may have been made or to the continuance of any proceedings which may have been commenced prior to the passing of this Act under any such provision.

The mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver and in order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds in the whole.

- 63.** All moneys raised by or on behalf of the Company under this Act shall be applied only to purposes to which capital is properly applicable. A.D. 1930.
—
Application of capital.
- 64.** The Company may appropriate and apply to all or any of the purposes of this Act being purposes to which capital is properly applicable any of the moneys which they have raised or are authorised to raise and which are not required for the purposes to which they are made specially applicable. Power to Company to apply funds.
- 65.** Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action. Recovery of demands.
- 66.** The Company shall not out of any money by this Act authorised to be raised pay or deposit any sum which by any standing order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an Act authorising the Company to construct any other railway or to execute any other work or undertaking. Deposits for future Bills not to be paid out of capital.
- 67.** Nothing in this Act contained shall exempt the Company or their railways from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the passing of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by the Company. Provision as to general Railway Acts.
- 68.** Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown. Crown rights.
- 69.** All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.

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The SCHEDULES referred to in the
foregoing Act.

FIRST SCHEDULE.

**PROPERTIES WHEREOF PORTIONS ONLY MAY BE TAKEN
COMPULSORILY.**

Work or lands.	Area.	Nos. on deposited plans.
Railway - - -	Urban district of Leatherhead.	4 18 to 21 inclusive 24 to 32 inclusive 37.
Widening (No. 1)	Urban district of Heston and Isle- worth.	4 to 7 inclusive 14 to 35 inclu- sive 38 to 41 inclusive 41a 41b 41c 46 59 to 68 inclusive 71.
Widening (No. 2)	Urban district of Heston and Isle- worth.	96 97 98 and 149.

SECOND SCHEDULE.

Stamp.



AN AGREEMENT made the twenty-ninth day of June one
thousand nine hundred and twenty-nine between
THE SOUTHERN RAILWAY COMPANY (hereinafter
referred to as "the Company") of the one part and
THE COUNTY COUNCIL OF THE ADMINISTRATIVE
COUNTY OF KENT (hereinafter referred to as "the
County Council") of the other part.

WHEREAS :—

(1) In pursuance of powers contained in the Sittingbourne
and Sheerness Railway Act 1856 the Sittingbourne and Sheerness
Railway Company constructed an opening bridge over the passage
or channel called the Swale at or near the ferry known as the
Kings Ferry in the county of Kent for the purpose of carrying the
Sittingbourne and Sheerness Railway and also a carriage road

over the Swale together with approach roads to such carriage	A.D. 1930.
bridge (in the said Act designated as "the Queens Bridge" on	—
either side thereof.	

(2) It was by the said Act of 1856 provided that the said railway company might take and demand certain tolls for or in respect of persons animals and carriages passing over the said carriage bridge which was to be a public bridge and open to the public on payment of such tolls.

(3) Section 75 of the said Act of 1856 contained provisions to the effect that the revenue from such tolls should be applied (Firstly) in payment of all current expenses of the said railway company in relation to the carriage portion of the said bridge and the approaches thereto and (Secondly) in payment to or in aid of the general objects and purposes of that company.

(4) Under and by virtue of the London Chatham and Dover (Various Powers) Act 1866 the undertaking of the Sittingbourne and Sheerness Railway Company including the said opening bridge and the said approach roads became vested in the London Chatham and Dover Railway Company.

(5) By the South Eastern and London Chatham and Dover Railway Companies Act 1899 the management working and maintenance of the said opening bridge and the said approach roads were transferred to the South Eastern and Chatham Companies' Managing Committee.

(6) Between the years one thousand nine hundred and three and one thousand nine hundred and six the said managing committee reconstructed the said opening bridge.

(7) In or about the year one thousand nine hundred and ten the said managing committee by arrangement with the County Council and others completed a strengthening of the said carriage road bridge and thereupon became entitled under the provisions of the South Eastern and London Chatham and Dover Railways Act 1909 to demand and recover certain further tolls for the use thereof by the public in addition to the tolls prescribed by the said Act of 1856.

(8) By section 10 of the said Act of 1909 it was provided that after satisfying the obligations of the managing committee under the said section 75 of the Act of 1856 including the allocation of such sum as the managing committee should think fit not exceeding three and three-quarters per centum per annum on the capital for the time being properly expended on the said carriage road bridge the managing committee should apply the surplus revenue therefrom in reduction of the tolls authorised by the said Acts of 1856 and 1909.

(9) The undertakings of the London Chatham and Dover Railway Company and of the said managing committee (including the whole of the said bridge over the Swale and the approach

A.D. 1930. roads to the carriage road portion of that bridge and all rights powers duties and obligations in relation thereto) are now vested in and binding on the Company.

(10) Under a determinable agreement dated the fourteenth day of May one thousand nine hundred and twenty-one and made between the County Council of the one part and the said managing committee of the other part the County Council maintain the said approach roads in consideration of the payment to them by the Company of an annual sum of four hundred and seventy-four pounds seventeen shillings.

(11) The capital properly expended by the Company and their predecessors on the said carriage road bridge and the said approaches thereto amounts to the sum of forty-eight thousand one hundred and sixty-four pounds.

(12) For many years prior to and including the year one thousand nine hundred and twenty-three the expenses (including interest on capital) of the carriage portion of the said bridge and the approaches thereto exceeded the revenue from the said tolls and at the end of the year one thousand nine hundred and twenty-three there was an accumulated deficit of fifty-nine thousand four hundred pounds the whole of which was borne by the Company or their predecessors.

(13) Since the year one thousand nine hundred and twenty-three the revenue from the said tolls has exceeded the annual expenditure of the Company and at the end of the year one thousand nine hundred and twenty-eight the said deficit of fifty-nine thousand four hundred pounds had been reduced to the sum of forty-six thousand and seventy-five pounds.

(14) The County Council have requested the Company to free the said carriage road bridge and the approaches thereto from tolls and the Company are willing to agree thereto upon and subject to the conditions hereinafter contained.

Now this agreement witnesseth as follows :—

1. As from the first day of July one thousand nine hundred and twenty-nine the Company shall cease to levy any of the tolls authorised by the hereinbefore recited Acts of 1856 and 1909 in respect of persons vehicles and animals passing over the said carriage bridge or the approaches thereto.

2. The County Council having paid to the Company on or before the execution of these presents the sum of fifty thousand pounds (the receipt whereof the Company hereby acknowledge) that sum is accepted by the Company in full satisfaction of their right to continue to levy tolls in respect of (a) interest on the capital expended by them on the said carriage road bridge and the said approaches thereto and (b) the amount of the accumulated revenue deficit existing on the thirtieth day of June one thousand nine hundred and twenty-nine.

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4. As from the said first day of July one thousand nine hundred and twenty-nine the County Council shall take over and at their own cost hereafter maintain drain and light as if the same were highways repairable by the inhabitants at large the said approach roads (being the roads maintained by the County Council for the Company in accordance with the provisions of the hereinbefore recited agreement dated the fourteenth day of May one thousand nine hundred and twenty-one) and the roadway on the said carriage bridge and the County Council shall also take over and at their own cost hereafter maintain and light the barrier gates upon that bridge and the County Council shall be responsible for and shall indemnify the Company from and against all losses claims demands damages costs charges and expenses whatsoever which the Company may sustain or be put to or which may arise (either directly or indirectly) or may be contributed to by reason or in consequence of the observance or non-observance by the County Council of their obligations under this clause.

5. The Company shall remain responsible for maintaining renewing and operating for navigation the whole of the structure (including the bridge lifting machinery) of the bridge carrying the railway of the Company and the said carriage road over the Swale (the whole of which bridge shall remain vested in the Company) and the County Council shall not in any manner interfere with or disturb such structure.

6. The County Council shall repay to the Company annually by half-yearly payments on the thirtieth day of June and the thirty-first day of December or so soon thereafter as may be fifty per centum of—

- (a) the cost of maintaining the whole of the structure (including the bridge lifting machinery) of the said bridge;
- (b) the cost of operating the opening and closing of the bridge and the said barrier gates for navigation in the Swale including the cost of electric current and of the staff employed in such operations;
- (c) the cost of lighting the bridge for navigation.

7. The County Council shall bear and repay to the Company—

- (a) fifty per centum of the cost of renewing the whole of the said structure of such bridge (including the bridge lifting machinery) as and when renewal becomes necessary ;

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(b) fifty per centum of any expense incurred by the Company in connection with or arising out of any damage happening hereafter to any part of the structure of such bridge by floating craft or otherwise which the Company are unable to recover from the party causing such damage.

8. The hereinbefore recited agreement dated the fourteenth day of May one thousand nine hundred and twenty-one shall be determined as from the thirtieth day of June one thousand nine hundred and twenty-nine subject to the then accrued rights and liabilities of the parties hereto thereunder.

9. Nothing in this agreement shall (a) impose any obligation upon either party hereto to strengthen adapt alter or reconstruct the said carriage road bridge or enlarge any existing obligation of the Company or (b) prejudice or affect any right the Company may have to impose restrictions upon the passage over the said carriage bridge of vehicles which it is insufficient to carry.

10. Any difference which may arise between the Company and the County Council under the provisions of clauses 4 to 7 inclusive of this agreement shall be referred to and determined by an engineer to be appointed by the President of the Institution of Civil Engineers on the application of either party hereto after notice in writing to the other and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

11. The amount of the appropriate stamp duty on this agreement and the counterpart thereof shall be borne by the County Council.

12. This agreement shall in the next session of Parliament in which either of the parties hereto shall be promoting a Bill in Parliament be submitted to Parliament for confirmation and this agreement is made subject to such alterations as Parliament may think fit to make therein but in the event of either House of Parliament making any material alteration therein either party hereto may withdraw from this agreement.

In witness whereof the Company and the County Council have hereunto set their respective common seals the day and year first above written.

The common seal of the Southern Railway Company was hereunto affixed in the presence of

G. KNIGHT
Secretary.



Seal of
Southern
Railway
Company.

[20 & 21 GEO. 5.] *Southern Railway* [Ch. clxviii.]
Act, 1930.

The common seal of the county council of
the administrative county of Kent was
hereunto affixed in the presence of

A.D. 1930.

CORNWALLIS
Chairman of the County Council.

W. B. PROSSER
Clerk of the County Council.



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